CW2484387

CONSULTING SERVICES AGREEMENT

This Consulting Services Agreement (together with all of the exhibits and attachments hereto, this "**Consulting Services Agreement,**" with all of the Purchase Orders and Statements of Work, collectively the "**Agreement**") is entered into (the "**Effective Date**"), by and between Fiserv Solutions, LLC, a Wisconsin limited liability company having an office at 255 Fiserv Drive, Brookfield, WI 53045, ("**Fiserv**") and Xebia USA INC, a Delaware Corporation, having its principal place of business at Suite # 1100, 11th floor, Buckhead Tower at Lenox Square, 3399 Peachtree Road NE, Atlanta, Georgia, 30326 ("**Consultant**") (each a "**Party**"; together, the "**Parties**").

ARTICLE 1: DEFINITIONS

1.1 "**Affiliate**" shall mean an entity that controls, is controlled by, or is under common control with a Party, where "control" means the direct or indirect ownership of more than 40% of the voting securities of such entity or Party.

1.2 "**Auditable Records**" shall mean accurate auditable evidence maintained in any type of media, including, but not limited to, records, timesheets (or time tracking systems of any type), employment records, work specifications, project management notes and reports, consulting charges, invoices, travel and living expenses, receipts and employee expense records, which are the basis of, or otherwise relate to, any fees, expenses or other charges to Fiserv under any SOW for Services.

1.3 "**Change of Control**" shall mean: (a) outstanding stock representing 33% or more of the voting rights of a Party's shareholders, or outstanding stock representing 50% or more of the equity ownership of a Party, or all or substantially all of a Party's assets are sold, transferred, assigned or merged; (b) a Party assigns (other than by a change in controlling interest or a sale of all or substantially all of its assets) to a third party any of its rights and obligations under this Agreement; (c) a Party sells a line of business or division that performs any Services hereunder whether by asset sale, stock sale, merger or otherwise; or (d) any other transaction or series of transactions that result in a change of Control of a Party.

1.4 "**Confidential Information**" shall mean material or information, in any form, which is confidential or proprietary to Disclosing Party and not generally known by third parties, whether or not designated as Confidential Information by Disclosing Party. Confidential Information includes, but is not limited to, the following types of information and other information of a similar nature (whether or not reduced to writing and regardless of the form of media): systems manuals, decision processes, profiles, system and management architectures, discoveries, ideas, know-how, concepts or inventions (whether patented or not), software in various stages of development, business methods, processes, strategic plans or methodologies, marketing techniques and materials, marketing and development plans and procedures, Fiserv Data, price lists, pricing policies, business or financial information, plans, strategies, forecasts, forecast assumptions, trade secrets, and business practices. Confidential Information also includes any: (a) information described above which belongs to a third party, is disclosed to or access by Recipient hereunder, and with respect to which Disclosing Party owes a duty of confidentiality; (b) information which is jointly developed by the Parties and which either Party treats as proprietary or confidential; (c) information that, by its nature or the circumstances surrounding its disclosure, Recipient reasonably ought to know is confidential; and (d) notes, memoranda, analyses or abstracts relating to or containing Confidential Information.

1.5 "**Customer**" shall mean any person to whom or entity to which Fiserv or an Affiliate of Fiserv provides, or is actively attempting to provide, products or services.

1.6 "**Deliverables**" shall mean any ideas, know-how, documents, studies, materials, reports, data, plans, documentation, products, software (including source code and object code) or other materials in whatever form or any concept or design relating thereto developed in whole or part under any SOW or otherwise created by Consultant as a result of or related to the performance of the Services, including all intellectual property rights related thereto.

1.7 "**Disclosing Party**" shall mean the Party disclosing Confidential Information.

1.8 "**Fiserv Data**" shall mean any data or information pertaining to Fiserv, its Affiliates, and/or their respective Customers or employees which is generated, collected, received, or accessed by Consultant in connection with performing the Services, including without limitation PII. As between the Parties, Fiserv Data is Fiserv's Confidential Information.

1.9 "**Intellectual Property**" shall mean, to the extent that any of the following are recognized in any jurisdiction world-wide: (a) intellectual property and/or proprietary rights, whether registered or unregistered, including without limitation copyrights and patent rights (including without limitation applications for patent protection); (b) publicity rights, trade dress, registered or otherwise protected trademarks, trade names, service marks and protections from trademark dilution; (c) trade secrets, as defined in the Uniform Trade Secret Act or its successor, or its equivalent in the applicable jurisdiction; and (d) proprietary products, services, know-how, techniques, business processes, configurations, and business methods.

1.10 "**Personnel**" shall mean any agent, employee, or subcontractor employed or retained in any way, on a full or part time basis, by Consultant or any of its Affiliates, as well as any employee or agent of a subcontractor of Consultant or any of its Affiliates.

1.11 "**PII**" shall mean any personally identifiable information, defined as information that can be identified to a particular person without unreasonable effort, such as the names and social security numbers of individual consumers, individual Customers of Fiserv or its Affiliates, or employees of Fiserv or its Affiliates.

1.12 "**Pre-existing Intellectual Property**" shall mean products, software, ideas, skills, tools, techniques, processes and other Intellectual Property of a Party which it can convincingly evidence through written documentation as its Intellectual Property to be in existence prior to the Effective Date.

1.13 "**Purchase Order**" or "**PO**" shall mean a purchase order issued by Fiserv to Consultant for the purchase of the Services. Each Purchase Order will be subject to the terms and conditions set forth in this Consulting Services Agreement.

1.14 "**Recipient**" shall mean the Party that receives or otherwise has access to Confidential Information of the other Party.

1.15 "**Services**" shall mean any implementation, conversion, training, consulting or other professional services provided by Consultant to Fiserv pursuant to this Agreement and one or more SOW(s).

1.16 "**Statement of Work**" or "**SOW**" shall mean a statement of work executed by Consultant and Fiserv pursuant to which Consultant will provide Services to Fiserv, a sample attached as Exhibit B. Each SOW will be subject to the terms and conditions set forth in this Consulting Services Agreement.

1.17 "**Subcontractor**" shall mean any Affiliate of Consultant, any subcontractor of Consultant or any of its Affiliates, or any other third party to which Consultant subcontracts any portion of the Services hereunder.

ARTICLE 2: SERVICES

2.1 Scope of Services. Consultant agrees to perform the Services, including providing any Deliverables, as set forth in or contemplated by any SOW. Except as the Parties may expressly agree in writing, each SOW shall be governed in all respects by the terms and conditions of this Agreement. In the event of conflict between this Agreement and a SOW, this Agreement shall control with respect to the subject matter thereof.

2.2 Changes in Scope of SOW. Subject to any additional requirements described in an applicable SOW hereunder, either Party may propose changes to the scope of the SOW by delivery of a written notification to the other Party describing the desired changes ("**Change Request**"). The Party proposing the change(s) to the scope of the SOW shall provide with the Change Request an estimate of the effect on the cost and time of delivery associated with the Change Request. Fiserv shall have the right to reject or approve, in its sole reasonable discretion, any Change Request proposed by Consultant. No SOW will be

modified or changed until the Parties execute a written change order ("**Change Order**") or amendment to the applicable SOW.

2.3 Performance Schedule; Delays. Any delay in the performance schedule caused by Consultant may impact the fee payment as described in the applicable SOW. If any delays in Consultant's performance occur as a result of a material failure to cooperate or untimely performance by Fiserv, Consultant shall not incur any liability for its non-performance under the applicable SOW as a result of such delay.

2.4 Acceptance of Deliverables. Following receipt of a Deliverable or performance of Services, Fiserv shall have at least 15 business days ("**Review Period**") to review and accept such Deliverable or Services. If Fiserv identifies any nonconformity or defect with respect to the Deliverables or Services within such Review Period, then Consultant will have no more than 10 days in which to remedy all nonconformities and/or defects, after which, if such nonconformities and/or defects are not cured in Fiserv's reasonable opinion, Fiserv may, at its option, terminate this Agreement and/or any outstanding SOWs immediately without further payment obligation and receive a refund of any amounts already paid with respect to such Deliverables and Services.

2.5 Assignment of Personnel. Consultant shall consult with Fiserv in determining which of its employees and/or other personnel shall be assigned to perform the Services hereunder. Consultant shall not replace or reassign such person(s) during the term of the applicable SOW without Fiserv's prior written consent. If Fiserv believes that any individual assigned by Consultant to perform the Services is not in the best interests of Fiserv, then Fiserv shall have the right to request a replacement for such individual. If the problem cannot be resolved within five days after such request by Fiserv, then Consultant shall replace such individual with another individual, who, to the reasonable satisfaction of Fiserv, possesses the skills and experience necessary to provide the Services and Deliverables. Upon request from Fiserv, Consultant shall identify all Personnel performing any Services hereunder. In no event shall Consultant assign or permit any former Fiserv employee to perform Services for Fiserv (or otherwise have access to any Fiserv information or data) without Fiserv's prior written consent.

2.6 Fiserv Affiliates. Any Affiliate of Fiserv may execute SOWs under this Agreement in its sole discretion. In that event, all references to "Fiserv" herein shall refer to such Affiliate for purposes of the applicable SOW.

ARTICLE 3: COMPENSATION; TAXES

3.1 Fees. Fiserv will pay Consultant the amount specified in each SOW or PO, as applicable, for all Services performed thereunder.

3.2 Invoices.

(a) Consultant will invoice Fiserv in accordance with the applicable SOW or PO or, if not specified in the SOW or PO, then on a monthly basis for charges incurred for Services rendered during the preceding month. Consultant agrees to issue invoices and accept PO's through the electronic procurement tool designated by Fiserv (Ariba SAP/Fieldglass).

(b) Unless otherwise agreed to in a SOW, or specified by Fiserv in a PO, all invoices must:

(i) be sent to the address set forth in the SOW or PO, or otherwise provided by an authorized representative of Fiserv;

(ii) reference any applicable number set forth in the SOW or PO;

(iii) include a detailed description of the Services performed (including the names of individuals performing Services where the Services are being performed on a time and materials ("**T&M**") basis);

(iv) include the performance period(s) and relevant dates;

(v) include reimbursable expenses (including specific categories for airfare, accommodations, transportation and meals), if applicable;

(vi) reference the applicable Fiserv business representative; and

(vii) include a unique invoice number.

(c) Fiserv reserves the right to reject and return for correction any invoice that: (i) does not reflect the required information; or (ii) does not conform to Fiserv invoicing terms as specified in this Agreement or an applicable SOW or PO.

(d) All invoices submitted by Consultant shall be due and payable within 60 (Sixty) days of receipt of a correct invoice, except as otherwise set forth in Section 3.4 below. At Fiserv's discretion, payments may be made via EFT.

3.3 Taxes. Fiserv is responsible for any legally required sales and use tax on Services covered in this Agreement. If applicable, Consultant shall indicate on the invoice the amount of such tax and the jurisdiction to which the tax will be remitted. In the event Fiserv reasonably disagrees with the applicability of any invoiced taxes, Fiserv shall have the right to reduce the invoice by the amount of such taxes. In no event shall Fiserv be responsible for taxes based on Consultant's net or gross income, capital, property or employees, nor shall Fiserv be responsible for any penalties, fines, or interest resulting from Consultant's improper or untimely collection or remittance of taxes. Where required by law, Fiserv may withhold from payment any taxes which it is required to pay in connection with its purchases under this Agreement. In the event Fiserv enjoys any tax exemptions, provided that Fiserv provides reasonable evidence of such exemption(s), Consultant shall honor such exemption(s). In the event Fiserv reasonably disputes a tax hereunder, Consultant shall reasonably cooperate with Fiserv in disputing any such tax and/or seeking to recover any such tax from any taxing authority.

3.4 Disputes. If there exists a good faith dispute with regard to an item appearing on an invoice, Fiserv has the right to withhold such disputed amount while the Parties attempt to resolve the dispute in accordance with Article 8, provided that Fiserv provides Consultant with notice of such dispute on or before the due date of the disputed invoice. Fiserv's withholding of such disputed amount shall not constitute a breach of this Agreement, nor shall it be grounds for Consultant to suspend or terminate its performance of Services, so long as Fiserv pays on a timely basis those amounts that are undisputed.

3.5 Expenses. Unless otherwise agreed upon in a SOW, Fiserv will not reimburse Consultant for travel or other expenses incurred by Consultant or any Personnel in connection with providing Services under this Agreement. If such expenses are to be reimbursed, they must be pre-approved in writing by Fiserv and comply with Fiserv's travel and expense policy, a copy of which will be provided upon request. All expenses shall be itemized on invoices submitted by Consultant.

ARTICLE 4: CONFIDENTIAL INFORMATION AND SECURITY

4.1 Disclosure and Use.

(a) Recipient may be given access to Disclosing Party's Confidential Information. Recipient will protect Disclosing Party's Confidential Information from any unauthorized use, disclosure, copying, dissemination or distribution as it would protect its own Confidential Information, which shall be by no means less than a reasonable degree of care and as required by law. Recipient will only use the Confidential Information for the following "**Permitted Purposes**": (i) to perform its obligations under this Agreement; and, (ii) in the case of Fiserv, to derive the reasonable and intended benefit of the Services and Deliverables provided pursuant to this Agreement. Recipient specifically agrees not to use or disclose any "non-public personal information" about Disclosing Party's customers in any manner prohibited by Title V of the Gramm-Leach-Bliley Act or the regulations issued thereunder ("**GLB**"), as applicable to Recipient. Recipient will only disclose Confidential Information those of its and its Affiliates'

employees, agents, contractors, and subcontractors who have a direct "need to know" for a Permitted Purpose and who are subject to written obligations of confidentiality which are no less restrictive than those contained herein. Recipient shall be responsible for any breach of this Article 4 by any such individuals or entities. Recipient has implemented and shall maintain an information security program that is designed to meet the following objectives: (i) protect the security and confidentiality of customer information (as defined in GLB); (ii) protect against any anticipated threats or hazards to the security or integrity of such information; (iii) protect against unauthorized access to or use of such information that could result in substantial harm or inconvenience to any customer; and (iv) ensure the proper disposal of "consumer information" (information obtained from "consumer reports" as defined in the Fair Credit Reporting Act). Recipient shall also take appropriate actions to address incidents of unauthorized access to Disclosing Party's "sensitive customer information" (as defined in GLB), including notification to Disclosing Party as soon as possible of any misuse of or unauthorized access to Confidential Information of which it becomes aware and cooperation in the remediation of such situation promptly.

(b) Recipient may disclose Confidential Information to the extent required by law or legal process, provided that: (i) Recipient first gives Disclosing Party prompt notice, if legally permissible, so that Disclosing Party may seek a protective order; (ii) Recipient reasonably cooperates with Disclosing Party (at Disclosing Party's expense) in seeking such protective order; (iii) if Disclosing Party cannot obtain a protective order, Recipient only discloses the Confidential Information that in the reasonable opinion of its legal counsel is required to be disclosed; and (iv) all such Confidential Information required to be disclosed shall remain subject to the obligations in this Agreement.

(c) As between the Parties, all Confidential Information is the property of Disclosing Party. This Agreement will not be interpreted or construed as granting any license or any other Intellectual Property right to Recipient for any Confidential Information.

(d) Recipient will comply with any and all applicable laws relating to the use, disclosure, copying, dissemination and distribution of any Confidential Information (including, but not limited to, any and all laws relating to proprietary rights or the export of any technical data included in such Confidential Information).

(e) Upon the request of Disclosing Party, Recipient shall promptly return to Disclosing Party or destroy all Confidential Information; in either case, any and all copies of Confidential Information will be destroyed. Recipient will provide a written affidavit certifying that all Confidential Information has been returned or destroyed in compliance with this Section 4.1(e).

(f) Recipient will not alter, remove or obliterate markings (if any) on Confidential Information indicating its ownership, proprietary or confidential nature.

(g) If any Recipient employee or individual performing work for Recipient as a contractor or consultant (collectively "Employee") receives Confidential Information for Permitted Purposes, and Recipient has an agreement with Employee that (a) contains a provision governing the use of a trade secret or other confidential information and (b) is entered into or updated after May 11, 2016, Recipient shall ensure that any such agreement includes the following notifications or a cross-reference to a policy document containing the following notifications:

(i) Pursuant to 18 U.S.C § 1833(b)(1): "An individual shall not be held criminally or civilly liable under any Federal or State trade secret law for the disclosure of a trade secret that (A) is made (i) in confidence to a Federal, State, or local government official, either directly or indirectly, or to an attorney; and (ii) solely for the purpose of reporting or investigating a suspected violation of law; or (B) is made in a complaint or other document filed in a lawsuit or other proceeding, if such filing is made under seal."

(ii) Pursuant to 18 U.S.C. § 1833(b)(2): "An individual who files a lawsuit for retaliation by an employer for reporting a suspected violation of law may disclose the trade secret to the attorney of the individual and use the trade secret information in the court proceeding, if the individual (A) files any document containing the trade secret under seal; and (B) does not disclose the trade secret, except pursuant to court order."

4.2 Exclusions. Confidential Information will not include information which (as evidenced by written documentation):

(a) is or becomes available to the general public through no fault of Recipient;

(b) is developed by Recipient without breach of this Agreement or aid of Disclosing Party's Confidential Information; or

(c) is rightfully received by Recipient through no breach of confidentiality obligation from a third party without a duty of confidentiality.

4.3 Equitable Relief. Disclosing Party may suffer irreparable harm in the event that Recipient fails to comply with the terms of this Agreement. Monetary damages may be inadequate to compensate for such breach. Accordingly, in addition to any other remedies available to it at law or in equity, Disclosing Party shall be entitled to seek injunctive relief to enforce the terms of this Agreement without the requirement of having to post bond.

4.4 Security Addendum. Consultant shall comply with the Security Addendum attached hereto in Exhibit A, Annex B, Part B.

4.5 Data Processing Addendum. The terms of the data processing addendum ("**DPA**") attached hereto as Exhibit A are hereby incorporated by reference and shall apply to the extent Fiserv Data includes personal data, as defined in the DPA.

ARTICLE 5: OWNERSHIP; IP MATTERS

5.1 Unless otherwise expressly set forth in a SOW, Fiserv will own all Intellectual Property rights in any Deliverables, and all Deliverables are deemed "works made for hire." Consultant and Fiserv each acknowledge that the performance of the Services may result in the discovery, creation and development of Deliverables. Delivery to Fiserv shall constitute a transfer to Fiserv by Consultant of all Intellectual Property rights therein. All Deliverables discovered, created or developed under this Agreement shall be and remain the sole and exclusive property of Fiserv. In the event Deliverables do not fall within the specifically enumerated works that constitute "works made for hire" under United States copyright laws, Consultant hereby assigns all tangible and intangible Intellectual Property and other right title and interest in the Deliverables to Fiserv. Consultant agrees to execute any other documents necessary to perfect title in any Deliverable for Fiserv. Further: (a) Consultant will retain all right, title and interest to its Pre-existing Intellectual Property; (b) to the extent that Pre-existing Intellectual Property has been incorporated into or is embedded in the Deliverables, Fiserv will have a perpetual, nonexclusive, non-terminable, world-wide, royalty-free right to use, execute, modify, reproduce, display, perform, and prepare derivative works based on such Pre-existing Intellectual Property to support and make full use of the Deliverables.; (c) Consultant will promptly and fully disclose to Fiserv any and all work for hire and Deliverables generated, conceived, reduced to practice or learned by Consultant or Personnel, either solely or jointly with others, during and under the Term of this Agreement, which in any way relates to the business or operations of Fiserv; and (d)

neither Consultant nor its Personnel shall use or disclose any information relating to Deliverables except as necessary in the performance of the Services.

5.2 In the event that the Parties expressly agree in a SOW that Consultant will own of all or some portion of the Deliverables, then with respect to such Deliverables, the terms set forth in this Section 5.2 shall apply. Consultant hereby grants to Fiserv and its Affiliates a global, royalty-free, fully paid-up, non-exclusive, and perpetual right and license to use, execute, modify, reproduce, display, perform, and prepare derivative works based on such Deliverables to support and make full use of the Deliverables. For the avoidance of doubt, Fiserv does not grant, assign or in any way transfer any right, entitlement, privilege, permission, claim, title, ownership or interest in any of its Intellectual Property or other Confidential Information, either implicitly or explicitly, by operation of law or otherwise

5.3 Consultant shall not, without the prior written consent of Fiserv, introduce, embed, or utilize any third party software or other intellectual property ("Third Party Material") in any Deliverable, or in the performance of the Services hereunder. To the extent Fiserv provides such consent, Consultant hereby grants Fiserv and its Affiliates a perpetual, fully paid up, royalty-free, non-exclusive, world-wide, irrevocable license to use such Third Party Material for the benefit of Fiserv and its Affiliates in connection with the use of the Deliverables created hereunder, and the Parties will mutually agree on applicable terms for support of any such Third Party Material after expiration or termination of this Agreement. Consultant shall be responsible for any fees, expenses or costs resulting from its embedding of any Third Party Material within any Deliverables provided or developed under this Agreement.

ARTICLE 6: CONSULTANT RESPONSIBILITIES

6.1 Publicity. Consultant will not use the name(s), trademark(s) or trade name(s) of Fiserv or its Affiliates without Fiserv's prior written consent. Consultant shall not use Fiserv's or its Affiliates' name(s), logo(s), trademark(s) or other symbol(s) in advertising or publicity releases or publicly distributed materials, including, without limitation, customer lists or links to any Fiserv website, without Fiserv's prior written consent. Such prior written consent may only be granted by a Senior Vice President of Fiserv. Furthermore, Consultant shall not claim or suggest, implicitly or explicitly, that Fiserv's or its Affiliates' use of the Deliverable or Services constitutes an endorsement by Fiserv or any of its Affiliates of such Deliverable or Services.

6.2 Legal Status/Regulatory Changes. Consultant shall notify Fiserv, in writing, as soon as reasonably practicable upon becoming aware of any regulatory issues, arbitration, or litigation, pending or active, that may affect Consultant's performance under this Agreement or any SOW.

6.3 Screening Procedures. The screening procedures set forth below shall apply to all Personnel who: (i) have access to any of Fiserv's Confidential Information; (ii) have the ability to manipulate Fiserv's finance or accounting data; (iii) have access to Fiserv's networks or systems; or (iv) perform Services on Fiserv's premises without supervision by a Fiserv associate.

(a) PROCEDURES. Consultant shall cause to be performed, at its sole expense, each of the following checks and screenings on all such Personnel prior to the start of their assignment with Fiserv. Such screenings shall have been performed within the past five years of the date on which such Personnel commences an assignment with Fiserv, and the criminal convictions search shall be re-performed every five years.

(i) Criminal History Report. A criminal convictions search for the preceding seven year period shall be conducted. Subject to applicable law, no Personnel who have been convicted of or accepted responsibility for a felony of any type or a misdemeanor involving theft, fraud, embezzlement, or money laundering or which is otherwise

related to dishonesty or a breach of trust shall be assigned to, or permitted to continue an assignment with, Fiserv.

(ii) Drug Test. A drug test, which shall consist of a 10 panel urinalysis test, shall be conducted at a laboratory certified by the Substance Abuse and Mental Health Services Administration (SAMHSA). Any Personnel with a confirmed positive test will be denied assignment to Fiserv.

(iii) Global Watch List. A check against the U.S. Treasury's Office of Foreign Assets Control's (OFAC), "Specially Designated Nationals and Blocked Persons" (SDN) database shall be conducted, and any Personnel appearing in such database shall not be assigned to, or permitted to continue an assignment with, Fiserv.

(b) MONITORING. In the event that Consultant becomes aware of a fact or circumstance following the date of assignment to Fiserv which would have resulted in Personnel failing to pass one of the foregoing screening procedures (e.g., if the person is convicted of a felony after the date of his or her assignment to Fiserv), Consultant shall immediately remove such Personnel from Fiserv's account, project, and/or premises, as appropriate, and no longer permit such Personnel to perform Services for Fiserv. From time to time, upon Fiserv's request, Consultant shall provide Fiserv with documentation or other evidence reasonably acceptable to Fiserv to evidence that it has complied with the foregoing provisions.

6.4 Fiserv Policies and Procedures. While performing the Services, Consultant will abide by Fiserv's then-current standard safety and security procedures and policies, as Fiserv may communicate to Consultant from time to time. When assigned to perform work at a Fiserv location, all Personnel will also comply with Fiserv's policies regarding dress and appearance, professional conduct and any other reasonable work rules, regulations and instructions applicable to Fiserv employees generally, as Fiserv may communicate to Consultant from time to time.

6.5 Consultant Hardware & Software. Consultant will not bring any hardware or software onto Fiserv's premises unless such items are necessary for Consultant to perform Services under this Agreement. All such hardware and software is subject to inspection and/or scanning by Fiserv before Consultant may use said items on Fiserv's premises. Consultant will obtain approval from and comply with the directives provided by Fiserv prior to connecting any hardware to Fiserv's systems or network.

6.6 Use of Fiserv Equipment. Fiserv may lend to Consultant the following for use during the Term of the Agreement or SOW (collectively referred to as "**Fiserv Equipment**"): (a) a laptop computer ("**Fiserv Laptop**"); (b) a Multi-Factor Authentication (MFA) token; and/or (c) an access badge ("**Badge**"). Consultant agrees to: (i) store and process Confidential Information in electronic form only on the Fiserv Laptop; (ii) promptly transfer to the Fiserv Laptop any Confidential Information in electronic form that Consultant has previously stored elsewhere and securely and permanently delete it from its previous location; (iii) use the Fiserv Equipment only for performing Consultant's obligations under this Agreement; (iv) refrain from installing any software or hardware (including USB flash drives or external storage devices) on the Fiserv Laptop except to accomplish (ii) above or as otherwise specifically authorized by Fiserv in writing; (v) keep the login IDs and passwords confidential; (vi) keep the Fiserv Equipment physically secure at all times, locked up when not in Consultant's personal possession, and never checked as baggage on a flight; (vii) immediately inform Fiserv if the Fiserv Equipment is ever stolen, lost or missing; and (viii) complete a security awareness online course provided by Fiserv within two weeks of Consultant's engagement and annually thereafter.

6.7 Offshore Resources. Consultant, Consultant Personnel and Subcontractors shall not perform the Services nor access Fiserv Data outside of the U.S. without Fiserv's prior written consent.

ARTICLE 7: TERM AND TERMINATION

7.1 Term. The initial term of this Consulting Services Agreement shall commence on the Effective Date and shall continue for one year (the "**Initial Term**"). Thereafter, this Consulting Services Agreement shall

automatically renew for successive one year terms (each, a "**Renewal Term**" and, together with the Initial Term and any other Renewal Terms, the "**Term**") unless Fiserv provides notice of non-renewal at least 30 (thirty) days prior to the expiration of the Initial Term or then current Renewal Term t. Notwithstanding the foregoing, this Consulting Services Agreement shall remain in effect with respect to any SOWs entered into hereunder which are not also terminated until all Services thereunder have been performed . Fiserv, in its discretion, may extend a SOW Term on an open ended engagement or temporary engagement by written notice, so long as the Parties agree on a weekly or monthly cap on the hours that can be performed by Consultant or fees that can be invoiced by Consultant under such engagement.

7.2 Termination for Cause. Either Party may terminate this Agreement or any SOW or PO for cause immediately upon written notice as follows:

(a) for the other Party's failure to materially comply with the terms of this Consulting Services Agreement or a SOW or PO (provided such breach, if capable of being cured, is not cured within 30 days after written notice is provided to the other Party); or

(b) in the event the other Party becomes or is declared insolvent or bankrupt, is the subject of any proceedings relating to its liquidation, insolvency, or for the appointment of a receiver or similar officer for it, makes an assignment for the benefit of all or substantially all of its creditors or enters into an agreement for the composition, extension or readjustment of all or substantially all of its obligations.

7.3 Additional Right of Termination. Fiserv may also terminate this Agreement or any SOW or PO immediately upon written notice as follows upon a Change of Control of Consultant.

7.4 Termination for Convenience. Fiserv may terminate this Agreement or any SOW of PO for convenience upon 10 days written notice to Consultant.

7.5 Prepaid Fees. In the event Fiserv terminates this Agreement or any SOW or PO for any reason, Consultant shall reimburse Fiserv for all unearned fees which were prepaid by Fiserv.

ARTICLE 8: DISPUTE ESCALATION

Before initiating arbitration or other legal action against the other relating to a dispute herein, the Parties agree to work in good faith to resolve disputes and claims arising out of this Agreement. To this end, either Party may request that each Party designate an officer or other management employee with authority to bind such Party to meet to resolve the dispute or claim. If the dispute is not resolved within 30 days of the commencement of informal efforts under this paragraph, either Party may pursue formal dispute resolution. This paragraph will not apply if expiration of the applicable time for bringing an action is imminent and will not prohibit a Party from pursuing injunctive or other equitable relief to which it may be entitled.

ARTICLE 9: WARRANTY

9.1 Consultant Warranties. Consultant warrants that:

(a) All Services performed by Consultant (including Personnel) pursuant to this Agreement shall be performed in a professional and workmanlike manner using due care and consistent with the standards of Consultant's industry, using appropriately trained and qualified personnel;

(b) The Services and Deliverables shall conform in all respects to the specifications and requirements set forth in the applicable SOW. If any of the Services or Deliverables fail to so conform, Consultant shall remedy such non-conformity in a prompt manner;

(c) Neither Consultant's performance of the Services nor the Deliverables shall infringe nor cause the Services or Deliverables to infringe any copyright, patent, trade secret or other intellectual property right of any third party;

(d) Consultant will not use in the performance of the Services or bring to Fiserv, any confidential or proprietary information, knowledge or data belonging to a third party;

(e) Consultant's performance of all the terms of this Agreement and each SOW will not result in a breach of any agreement to keep in confidence information, knowledge or data acquired by Consultant in confidence or in trust including without limitation, proprietary information, knowledge or data acquired by Consultant in confidence or trust prior to its consulting engagement with Fiserv;

(f) Consultant shall perform the Services and all of its obligations under this Agreement and each SOW in accordance with all applicable laws and regulations pertaining to either the Services or Deliverables provided, or the data or other information with which Consultant comes into contact; including, but not limited to applicable privacy and data security laws and regulations; and

(g) Consultant (including contractors and Subcontractors) agrees that it shall abide by the requirements of 41 CFR §§ 60-1.4(a), 60-300.5(a) and 60-741.5(a). These regulations prohibit discrimination against qualified individuals based on their status as protected veterans or individuals with disabilities, and prohibit discrimination against all individuals based on their race, color, religion, sex, sexual orientation, gender identity, or national origin. Moreover, these regulations require that covered prime contractors and subcontractors take affirmative action to employ and advance in employment individuals without regard to race, color, religion, sex, sexual orientation, gender identity, national origin, disability or veteran status. Consultant agrees that it shall comply with all laws relating to modern slavery and human trafficking, will not engage in modern slavery or human trafficking, and will conduct due diligence of Consultant's supply chain to ensure that its suppliers service providers are not engaging in modern slavery or human trafficking.

9.2 No Viruses, Disabling Devices, or Trap Doors. Consultant warrants that the Services and Deliverables shall be provided to Fiserv free of: (a) any instructions, devices or techniques that can, or are designed to, threaten, infect, assault, vandalize, defraud, disrupt, damage, disable, alter, inhibit or shut down the Services and/or Fiserv's processing environment, including, but not limited to, other programs, data and libraries or otherwise prevent Fiserv from utilizing the Services as intended ("**Viruses**"); (b) any instructions or code which prevent or limit Fiserv's use of the Services or Deliverables or cause the Services or Deliverables to cease functioning ("**Disabling Devices**"); or (c) any instructions or code which allow access to Fiserv's computing systems without Fiserv's knowledge and express written consent ("**Trap Doors**").

9.3 System Security. Consultant warrants that: (a) all Consultant connectivity to Fiserv computing systems and/or networks and all attempts at the same shall be only through Fiserv's security gateways/firewalls and only through Fiserv's approved security procedures; (b) it will not access, and will not permit Personnel or other persons or entities to access Fiserv computing systems and/or networks without Fiserv's express written authorization and any such actual or attempted access shall be consistent with any such authorization; and (c) it will use the latest available, most comprehensive Virus detection/scanning program prior to any attempt to access any of Fiserv's computing systems and/or networks and, upon detecting a Virus, all attempts to access Fiserv's computing systems and/or networks shall immediately cease and shall not resume until any such Virus has been eliminated. Consultant shall notify Fiserv immediately if it suspects, reasonably believes or becomes aware of the existence of any Viruses, Disabling Devices or Trap Doors in the Services or Deliverables. Consultant shall also notify Fiserv immediately if it identifies any elements of the Services or Deliverables that would make such Services or Deliverables susceptible to known Viruses or Viruses Consultant comes to know of.

9.4 Authority. Each Party warrants that: (a) it is validly existing and in good standing under the laws of the state of its incorporation; (b) the execution, delivery, and performance of this Agreement have been duly authorized by such Party and this Agreement is enforceable upon its terms against such Party; and (c) no approval, authorization, or consent of any governmental or regulatory authorities is required to be obtained or made by such Party in order for it to enter into and perform its obligations under this Agreement.

9.5 Disclaimer. OTHER THAN AS EXPRESSLY CONTAINED HEREIN OR IN A SOW, THERE ARE NO WARRANTIES OF ANY KIND OR NATURE, WHETHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE OR USE.

ARTICLE 10: INDEMNITY

10.1 General Indemnity. Each Party ("**Indemnifying Party**") agrees to defend, indemnify and hold the other Party, its Affiliates, and its and their respective directors, officers, members, employees, Customers, and agents (collectively, the "**Indemnitees**") harmless from and against all claims, actions, suits or proceedings (collectively, "**Claims**"), and shall pay all resulting losses, liabilities, damages, settlement amounts costs, fines, penalties or expenses (including attorney's fees) (collectively, "**Losses**"), incurred by any Indemnitee arising out of or relating to any:

(a) personal injury, death, or damage to real or tangible property arising from any act or omission of the Indemnifying Party; and

(b) [Applicable only to the Consultant]: claims for any taxes, wages, or benefits brought by any Personnel.

10.2 Intellectual Property Indemnity. Consultant shall defend, indemnify and hold the Indemnitees harmless from and against all Claims and shall pay all resulting Losses incurred by the Indemnitees arising from the actual or alleged infringement, misappropriation or violation of any Intellectual Property right belonging to any third party by: (a) the Services and/or Deliverables; and/or (b) an Indemnitee's use of the Services and/or Deliverables.

10.3 Security Breach Indemnity. Consultant shall defend, indemnify, and hold the Indemnitees harmless from all Claims resulting from any breach by Consultant of its obligations with respect to Confidential Information, as set forth in this Agreement, or any other negligence or willful misconduct on the part of Consultant or any Personnel that results in unauthorized access to or disclosure of any Fiserv Confidential Information.

10.4 Alternate Remedies for Alleged Infringement. Consultant will give Fiserv prompt written notice of any threat, warning or notice of any Claim against Consultant or components of the Services or Deliverables which could have an adverse impact on Fiserv's use thereof, provided Consultant knows or has reason to know of such Claim. Should Fiserv's use of the Services or any Deliverables furnished hereunder be restricted, encumbered, or enjoined by reason of any such actual or alleged infringement, Consultant shall promptly and at no cost to Fiserv: (a) obtain for Fiserv the right to continue to use the Services or Deliverables; (b) modify the Services or Deliverables so as to remove the cause of the Claim (provided that Consultant's modification will not affect Fiserv's intended use of the Services or Deliverables or degrade the quality or functionality thereof); or (c) replace the Services or Deliverables with equally suitable, non-infringing Services or Deliverables which will be subject to the provisions of this Agreement. If option (a), (b), or (c) is not available to Consultant, then: (i) Fiserv shall have the right to immediately terminate the Agreement or the applicable SOW; and (ii) Consultant shall provide a refund of any fees paid for the Deliverable, including fees paid for the Services related to such Deliverable. The foregoing remedies in this Section 10.4 shall be the sole remedy of Fiserv and Consultant's sole obligations with regards to any Claim or alleged or actual infringement.

10.5 Intellectual Property Indemnity Exclusions. Consultant shall have no obligation to indemnify the Indemnitees pursuant to Section 10.2 to the extent the Claim is a result of, and would not have occurred but for: (a) a modification of the Services or Deliverable, except a modification made or approved by Consultant or its Personnel; or (b) use of the Services or Deliverable prohibited in the applicable SOW.

10.6 Conduct of Defense. Consultant shall assume and have the right to conduct: (a) the defense of any Claim for which Fiserv seeks indemnification pursuant to this Article 10; and (b) all negotiations for settlement or compromise unless otherwise mutually agreed to in writing between the Parties hereto,

provided that Consultant shall not have the right to: (i) execute any agreement, document or pleading that names an Indemnitee as a party; (ii) make statements regarding any Indemnitee without such Indemnitee's prior written consent, which consent will not be unreasonably withheld or delayed; or (iii) settle any claim that in any way assesses blame against any Indemnitee or that provides a remedy other than the payment of money without such Indemnitee's prior written consent.

10.7 Notice. Fiserv agrees to give Consultant prompt notice of any written threat, warning, or notice of any Claim for which an Indemnitee intends to seek indemnification and copies of all papers served upon or received by it relating to the same, however, no delay on the part of an Indemnitee in notifying Consultant shall relieve Consultant from any obligations hereunder unless, and then solely to the extent that, Consultant is materially prejudiced thereby. Fiserv agrees to provide reasonable assistance and information to Consultant (at Consultant 's expense) regarding the defense of any Claim.

ARTICLE 11: LIMITATION OF LIABILITY

11.1 Liability Limitation and Exclusions.

(a) EXCEPT AS OTHERWISE SET FORTH IN SUBSECTION (c) BELOW, IN NO EVENT SHALL EITHER PARTY OR ITS AFFILIATES BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES WHATSOEVER (COLLECTIVELY, "**Indirect Damages**"), WITHOUT REGARD TO CAUSE OR THEORY OF LIABILITY, REGARDLESS OF WHETHER SUCH DAMAGES ARISE OUT OF THIS AGREEMENT OR THE SERVICES OR DELIVERABLES PROVIDED HEREUNDER, AND EVEN IF SUCH PARTY OR ITS AFFILIATE HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. FOR PURPOSES OF THIS AGREEMENT, ALL DAMAGES AWARDED TO A THIRD PARTY BY A COURT ORDER SHALL BE DEEMED DIRECT DAMAGES.

(b) Except as otherwise set forth in subsection (c) below, each Party's aggregate liability to the other Party or any third party for any and all claims or obligations relating to this Agreement shall be limited to three times the total fees paid by Fiserv to Consultant under this Agreement in the past 12 months preceding the incident under which the liability arose (the "General **Damages Cap**"), except that this subsection (b) shall not limit the fees which are due to Consultant for Services performed hereunder or any refunds which Consultant may owe to Fiserv hereunder.

(c) Notwithstanding the limitations set forth in subsections (a) and (b), there shall be no limit of liability with respect to: (i) Consultant's IP indemnification obligations under Section 10.2; and (ii) damages which arise from a breach by Consultant of its confidentiality or security obligations as set forth herein (except as set forth in 11.1 (d) below).

(d) Notwithstanding the limitations set forth in subsections (a), (b) and (c) the limit of liability with respect to the following shall be the greater of five (5) times the General Damages Cap or $10M USD: (i) damages which are related to, or arise from, personal injury, death, or damage to tangible property arising from an act or omission of Consultant or any Personnel; (ii)damages which arise from security obligations related to PII; (iii) damages which arise from Consultant's noncompliance with applicable laws and regulations; (iv) damages which arise from Consultant's or any Personnel's gross negligence or willful misconduct; (v) damages which arise from Consultant's or any Personnel's misappropriation or misuse of software, code, or other Intellectual Property owned by or licensed to Fiserv; or (vi) Indirect Damages which arise from a breach by Consultant of its confidentiality or security obligations as set forth herein.

11.2 Limitations Period. Except with respect to Consultant's indemnification obligations or claims related to Confidential Information, neither Party may assert any claim against the other related to this Agreement more than two years after such claim accrued.

ARTICLE 12: INSURANCE REQUIREMENTS

During the Term of this Agreement, Consultant and its approved Subcontractors shall secure and maintain, each at its own expense, insurance of the types and with limits not less than those set forth in the Insurance Exhibit to Security Addendum in Exhibit A hereto.

ARTICLE 13: NON-COMPETE

13.1 Non-Compete Agreement. Consultant acknowledges the competitive nature of the business in which Fiserv competes and recognizes that the Personnel assigned to Fiserv under this Agreement and applicable SOWs will be exposed to Fiserv's Confidential Information. Therefore, Consultant, during the Term of this Agreement, shall ensure that any Personnel assigned to provide Services to Fiserv hereunder shall not be assigned to any Competing Businesses during the course of such assignment and for a period of one year after the assignment with Fiserv has been completed. For purposes of this Agreement, "**Competing Businesses**" shall mean any person or entity which sells, licenses or otherwise distributes software or offers processing services which perform the same or substantially the same functions as Fiserv. The Parties agree that the restrictions contained in this Section 13.1 are necessary for the protection of the business and goodwill of Fiserv and are considered by Consultant to be reasonable for such purpose. The Parties: (a) acknowledge the relevant public policy aspects of covenants not to compete; and (b) agree every effort has been made to limit the restrictions placed upon Consultant and Personnel to those that are reasonable and necessary to protect Fiserv's legitimate interests.

13.2 Equitable Relief. Consultant agrees that any breach of Section 13.1 will cause Fiserv substantial and irrevocable damage and therefore, in the event of any breach, in addition such other remedies which may be available, Fiserv shall have the right to obtain specific performance and other injunctive and equitable relief.

ARTICLE 14: GENERAL PROVISIONS

14.1 Entire Agreement. This Agreement constitutes the entire understanding and agreement between the Parties with respect to the transactions contemplated herein and supersedes any and all prior or contemporaneous oral or written communications or agreements with respect to the subject matter hereof. No usage of trade, or other regular practice or method of dealing between the Parties hereto or others, will be used to modify, interpret, supplement, or alter in any manner the express terms of this Agreement. The SOWs entered into under this Agreement, and the Exhibits attached hereto, are incorporated herein by reference and are integral parts of the Agreement. To the extent that there are any conflicts between the terms and conditions in any SOW and those contained in this Agreement (unless explicitly stated to the contrary in the SOW), the terms and conditions set forth in this Agreement shall control. If any document issued by Consultant includes any reference that is inconsistent with the provisions of this Agreement, such references shall be null and void despite no objection being stated by Fiserv.

14.2 Modification of Agreement. Neither this Agreement nor any SOW may be modified or amended except by a written document which is executed by an authorized representative of each of Fiserv and Consultant.

14.3 Severability. Each provision of this Agreement is severable. If any court with jurisdiction over the Parties and the subject matter determines that any provision(s) of this Agreement is invalid or unenforceable, such provision(s) shall be deemed stricken, and the remainder of the Agreement shall continue in full force and effect insofar as the Agreement remains a workable instrument to accomplish the intent and purposes of the Parties. If practicable, the Parties will promptly replace the severed provision(s) with a mutually acceptable valid, legal, and enforceable provision that reflects the intentions of the Parties underlying the severed provision(s), provided that a failure to find such an acceptable substitute shall not affect the applicability of the first sentence of this Section 14.3.

14.4 No Exclusivity. Nothing herein shall restrict Fiserv's right to contract with any third party to provide products and/or services similar to or identical to the Services provided under this Agreement. Furthermore, there is no requirement that any minimum level of business or fees be provided to Consultant by Fiserv.

14.5 Survival. The provisions of this Agreement which by their nature are intended to survive the termination, cancellation, completion or expiration of the Agreement shall continue as valid and enforceable obligations of the Parties notwithstanding any such termination, cancellation, completion or expiration. Without limiting the foregoing, the provisions regarding confidentiality, indemnity, and limitations of liability shall survive the expiration or termination of this Agreement.

14.6 Independent Contractor. The Parties agree that each is performing its obligations hereunder as an independent contractor. Nothing contained in this Agreement, nor any action taken by any Party to this Agreement, shall be deemed to constitute Consultant (including any Personnel) an employee or legal representative of Fiserv. Consultant, in performance of Services provided hereunder, is acting as an independent contractor. Personnel who are located or perform Services at Fiserv facilities shall remain Personnel of Consultant, Consultant shall have sole responsibility for such Personnel, and Consultant shall pay any and all assessments and employment taxes in connection with the Services and Personnel. Personnel supplied by Consultant hereunder are not Fiserv's employees or agents, and Consultant assumes full responsibility for Personnel's acts. Consultant shall be solely responsible for the payment of compensation of the Personnel assigned to perform Services hereunder, and Personnel shall not be eligible for or participate in any way with Fiserv benefit plans. Fiserv shall not be responsible for payment of worker's compensation, disability benefits, unemployment insurance and for withholding income taxes and social security for any Personnel, and Consultant shall indemnify and hold Fiserv harmless from any such Claims by Personnel against Fiserv or its Affiliates.

14.7 No Agency. Nothing in this Agreement shall be deemed to create any partnership, joint venture, association, or syndicate among or between the Parties, nor to confer on Consultant any express or implied right, power or authority to enter into any agreement or commitment on behalf of (nor to impose any obligation upon) Fiserv. Consultant shall have no authority to act for or on behalf of Fiserv or to represent Fiserv in any transaction, except to the extent such authority is expressly granted in this Agreement, or otherwise in writing, by Fiserv to Consultant. Any action taken by Consultant that is not permitted by the provisions of this Agreement or otherwise by Fiserv shall not bind Fiserv or create any claim against the assets of Fiserv.

14.8 Governing Law; Jury Trial Waiver. This Agreement will be governed by and construed in accordance with the laws of the State of New York. Any legal action or proceeding relating to this Agreement may be instituted in a state or federal court in Milwaukee County, Wisconsin or in the Federal District Court for the Eastern District of Wisconsin. Fiserv and Consultant agree to submit to the jurisdiction of, and agree that venue is proper in, these courts in any such action or proceeding. Both Parties agree to waive any right to have a jury participate in the resolution of any dispute or claim between the Parties or any of their respective Affiliates arising under this Agreement. The application of the United Nations Convention on Contracts for the International Sale of Goods to this Agreement is expressly excluded and the Uniform Computer Information Act does not apply to this Agreement.

14.9 Non-Waiver. The waiver by either Party of any breach or default by the other Party of any of term of this Agreement will not be deemed to be a waiver of any subsequent breach or default under the same or any other term of this Agreement. Likewise, neither the failure nor any delay on the part of either Party in exercising any right under this Agreement or any SOW shall operate as a waiver thereof. Any remedy provided for in this Agreement is non-exclusive and in addition to all other remedies available to at law, by statute or in equity. All remedies available hereunder are cumulative.

14.10 No Third Party Beneficiaries. This Agreement is for the sole benefit of the Parties hereto and nothing herein, express or implied, shall give or be construed to give any rights hereunder to any third party. Neither this Agreement nor the Parties hereto intend to confer a third party beneficiary right of action upon any person or entity whatsoever, and nothing in this Agreement will be construed so as to confer upon any person or entity, other than the Parties hereto, a right of action either under this Agreement, or otherwise, in any manner whatsoever.

14.11 Force Majeure. If either Party cannot perform any of its obligations because of any act of God, court order, fire, riot, war, or any and other causes beyond a Party's reasonable control and which it could

not have prevented by reasonable precautions (a **"Force Majeure Event"**), then the non-performing Party will: (a) immediately notify the other Party; (b) take reasonable steps to resume performance as soon as possible; and (c) not be considered in breach during the duration of the Force Majeure Event. In the event a Force Majeure Event continues for a period of five business days, Fiserv may terminate this Agreement by providing written notice to Consultant. Fiserv's requirement to pay for Services and/or Deliverables affected during a Force Majeure Event shall be suspended until Services are resumed in accordance with the terms of this Agreement. Notwithstanding the foregoing, a Force Majeure Event shall not relieve Consultant of its disaster recovery obligations. Notwithstanding the foregoing, under no circumstances shall any delay or failure to perform be excused or forgiven: (i) if the cause of the delay or failure could have been prevented or avoided by the exercise of all due diligence; or (ii) if the Party whose performance is delayed or prevented fails to use all due diligence to promptly overcome and/or mitigate the delay or failure to perform.

14.12 Prevailing Party. The prevailing Party in any arbitration, suit, or action brought by one Party against the other Party to enforce the terms of this Agreement or any rights or obligations hereunder, shall be entitled to receive its reasonable costs, expenses, and attorneys' fees of bringing or defending such arbitration, suit, or action.

14.13 Notices. Under this Agreement and/or any SOW, if one Party is required to give notice to the other, such notices shall be deemed given when personally delivered or three (3) business days after being mailed by U.S. certified mail, first class, postage prepaid (or by reputable courier service with package tracking ability (such as Fed Ex, UPS, DHL, etc.), and addressed as follows (or to such other address for notice as a Party may subsequently notify the other in accordance with the provisions of this Section):

If to Fiserv: Fiserv, Inc.
255 Fiserv Drive
Brookfield, WI 53045
Attn:

With a copy to:
(which shall not constitute notice): Fiserv, Inc.
255 Fiserv Drive
Brookfield, WI 53045
Attn: Chief Legal Officer

If to Consultant: Xebia USA INC.
Suite #1100, 11th floor, Buckhead Tower at Lenox Square, 3399 Peachtree Road NE, Atlanta, Georgia, 30326
Atten: Mr. Vipul Baijal [Managing Director] &
Mr. Sameer Bhowmik [Legal Counsel]
Email: vipul.baijal@xebia.com, & sameer.bhowmik@xebia.com

14.14 Audit. Consultant will maintain Auditable Records with respect to the Services provided under this Agreement. With respect to any given SOW, such records shall be maintained for a period of seven years from the date Services under such SOW are completed or seven years from the date of delivery of the Deliverables (as applicable). All Auditable Records that may assist in the audit process will be available for audit by Fiserv or its agents during normal business hours and upon reasonable advance notice.

14.15 Rules of Construction. As used in this Agreement, unless otherwise provided to the contrary:

(a) The article and section headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning or interpretation of this Agreement.

(b) Despite the possibility that one Party may have prepared the initial draft of this Agreement or played the greater role in the physical preparation of subsequent drafts, the Parties agree that neither of them shall be deemed the drafter of this Agreement and that, in construing this Agreement in case of any claim that any provision hereof may be ambiguous, no such provision shall be construed in favor of one Party on the ground that such provision was drafted by the other; and

(c) The terms of this Agreement have been established by mutual negotiation and shall be deemed to have been mutually drafted.

14.16 Counterparts; Electronic Execution. This Agreement and any amendments or SOWs hereunder may be executed simultaneously in two or more counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same agreement. The Parties may execute this Agreement and any amendment or SOW hereto in the form of an electronic record utilizing electronic signatures, as such terms are defined in the Electronic Signatures in Global and National Commerce Act (15 U.S.C. §7001 et seq.). Electronic signatures, or signatures transmitted by facsimile or electronically via PDF or similar file delivery method is legal, valid and binding execution and delivery for all purposes, and shall each have the same effect as an original signature.

14.17 Assignment. Neither Party may assign this Agreement or any rights granted hereunder, whether by operation of law or otherwise, without the prior written consent of the other Party, except that Fiserv may assign this Agreement to an Affiliate or to a successor in the event of a Change of Control. For clarity, a Change of Control of Consultant shall be deemed an assignment hereunder. Any attempt to assign in violation of this Section 14.17 will be deemed null and void. Subject to the foregoing, this Agreement shall inure to the benefit of the Parties' respective successors and permitted assignees.

14.18 Subcontracting; Change of Control. Consultant shall not subcontract, team, contract out or otherwise assign its obligations to perform any Services, either in whole or part, under this Agreement to any third party without the prior written consent of Fiserv. Consultant shall be liable for all acts and omissions of, and breaches of this Agreement by, its Subcontractor(s). All Subcontractors approved by Fiserv shall: (i) comply with all laws and regulations issued that are applicable to Consultant and such subcontractor's performance of the Services; and (ii) abide by all of the terms and conditions of this Agreement and any applicable SOW.

14.19 Supplier Diversity**.** Fiserv's policy is to support a diverse marketplace through proactively developing supply chain relationships with qualified, certified, minority-, woman-, disabled-, veteran- and LGBT -owned businesses as well as small businesses ("**Diverse Suppliers**") both at the primary and second-tier contracting levels. A cornerstone of this policy is the expectation that Fiserv suppliers will participate in its Supplier Diversity initiative by actively seeking qualified diverse suppliers to bid for available subcontracting opportunities. Supplier shall, at Fiserv's request, develop agreed upon second-tier diverse spend targets and subcontracting plans and document the plans once established. Supplier will use good faith and commercially reasonable efforts to use diverse suppliers as subcontractors consistent with the efficient performance of this Agreement and will provide Fiserv with a quarterly report summarizing its spend through Fiserv's designated supplier diversity tool.

IN WITNESS WHEREOF, the Parties hereto have duly executed this Agreement on the day and year first above written.

DS
YC

FISERV SOLUTIONS, LLC:

DocuSigned by:
Signature: Robert Shields
23F74EB1199C44C...

Name: Robert Shields

Title: Authorized Signatory

Date: 9/11/2023

Xebia USA INC:

DocuSigned by:
Signature: Vipul Baijal
2D813CA382674F5...

Name: Vipul Baijal

Title: Managing Director

Date: 9/11/2023

EXHIBIT A

Data Processing Addendum

PARTIES

Fiserv	Fiserv Solutions, LLC, a Wisconsin limited liability company whose principal place of business is at 255 Fiserv Drive Brookfield, WI 53045 *("**Fiserv**")*
Vendor	[*Insert Vendor details*] *("**Vendor**")*

KEY TERMS

1.	**Agreement**	Consultant Services Agreement (the "***Agreement***")
2.	**Processing Activities**	Summary of the processing of personal data under the Agreement. **Subject matter of the processing** Personal data processed to allow the Vendor to provide the Services. **Nature and purpose of the processing** [*Insert details around the nature and purpose of the processing as provided by Vendor*] **Categories of data subjects** The personal data processed relates to the following categories of data subjects: ☐ Fiserv's or client's customers/consumers ☐ Fiserv's clients (employees and principles) ☒ Fiserv's employees or contractors [*Insert any additional relevant categories*] **Categories of personal data processed** The personal data processed comprises the following categories of data: ☒ Names ☐ Addresses ☐ Dates of birth ☐ Telephone numbers ☒ Emails ☐ Job titles

		☐ Card numbers ☐ Transaction history ☐ Device IDs ☐ Geolocation [*Insert any additional relevant categories*] **Sensitive categories of personal data processed (if applicable)** The personal data transferred concern the following special categories of data: [*If applicable, insert relevant special categories of data processed*]
3.	**Duration**	The processing will be carried out for the duration of the Agreement.
4.	**Approved sub-processors**	[*Insert list of approved sub-processors at time of DPA –**not** hyperlink*]
5.	**Cross-border data transfers**	Personal data shall not be accessed or transferred outside of (i) in respect of EU personal data, the EEA; or (ii) in respect of any other personal data, its country of origin. **OR** ☐ Clause 2.8 shall apply to the Agreement (data may be transferred to [*insert relevant jurisdiction(s)*]) **AND (select one or more of the following if (i) EU/Swiss personal data is being accessed or transferred out of the EEA, or (ii) UK personal data is being transferred out of the UK):** ☐ An adequacy decision (or equivalent) is in place in respect of one or more of the importing jurisdictions ☐ Clause 2.9 shall apply to the Agreement (Vendor to commit to Standard Contractual Clauses as processor, incorporating details in Annex C) ☐ Clause 2.10 shall apply to the Agreement (Vendor relies on processor binding corporate rules – *insert link to processor binding corporate rules*)

Annex A, Annex B and Annex C are incorporated into and form part of this Data Processing Addendum (this "**Addendum**").

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Annex A

1. Definitions and interpretation

1.1 A defined term shall have the meaning given to it in the Agreement unless otherwise defined in this Addendum.

1.2 In this Addendum:

"**Agreement**" is defined in Row 1 of the Key Terms;

"**Data Protection Legislation**" means European Directive 2002/58/EC, the GDPR, the UK Data Protection Act 2018, the UK GDPR, the CCPA, the LGPD, and any legislation and/or regulation implementing or made pursuant to them, or which amends, replaces, re-enacts or consolidates them and all other applicable laws relating to processing of personal data and privacy that may exist in any relevant jurisdiction, including, where applicable, the guidance and codes of practice issued by supervisory authorities;

"**CCPA**" means the California Consumer Privacy Act of 2018, as amended (Cal. Civ. Code §§ 1798.100 to 1798.199), and any related regulations or guidance provided by the California Attorney General. Terms defined in the CCPA, including "**Personal Information**", **Sell**, and "**Service Provider**", shall be interpreted in accordance with the definitions in the CCPA;

"**controller**" means any entity which, alone or jointly with others, determines the purposes and means of the processing of personal data;

"**processor**" is an entity which processes personal data on behalf of the controller;

"**data subject**", "**processing**" and "**appropriate technical and organisational measures**" shall take their meanings from the GDPR, regardless of whether the GDPR applies to the processing of the personal data;

"**EU personal data**" means the processing of personal data to which Data Protection Legislation of the European Union, or of a Member State of the European Union or European Economic Area, was applicable prior to its processing by Vendor;

"**EU/Swiss personal data**" means the processing of personal data to which: (1) Data Protection Legislation of the European Union, or of a Member State of the European Union or European Economic Area; or (2) the FDAP, was applicable prior to its processing by Vendor;

"**FADP**" means the Swiss Federal Act on Data Protection;

"**GDPR**" means Regulation (EU) 2016/679 or the European Parliament and of the Council;

"**LGPD**" means Law No. 13,709 of August 14, 2018 (General Data Protection Law), as enforced by the National Data Protection Authority in Brazil (the "ANPD");

"**personal data**" means any information that identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably by linked, directly or indirectly, with a particular person or household, and, where the CCPA is applicable (or such other Data Protection Legislation that use the terms), shall also be interpreted to include Personal Information or nonpublic personal information;

“Security Breach" means (i) any unauthorised or unlawful processing of; accidental or unlawful loss, destruction, damage, theft, alteration or disclosure of, or access to; or unauthorised disclosure or use of, or access to, the personal data that the Vendor processes in the course of providing the Services, including a denial of service attack; or (ii) any other issue which violates the security requirements set out at Annex B;

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"**Services**" means the services to be provided by the Vendor to Fiserv pursuant to and as further set out in the Agreement;

"**Standard Contractual Clauses**" mean:

(a) in respect of EU/Swiss personal data, the standard contractual clauses for the transfer of personal data to third countries pursuant to the GDPR, adopted by the European Commission under Commission Implementing Decision (EU) 2021/914 including the text from the modules of such clauses as indicated in the Key Terms and in Annex C Part A and no other modules and not including any clauses marked as optional, and provided that, in so far as the FADP was applicable prior to the processing by Vendor, any references in the clauses to the GDPR shall refer to the FADP, the term 'member state' must not be interpreted in such a way as to exclude data subjects in Switzerland from the possibility of suing for their rights in their place of habitual residence in accordance with clause 18(c) of the clauses and the clauses shall also protect the data of legal persons until the entry into force of the revised FADP (**"EU Standard Contractual Clauses"**); and

(b) in respect of UK personal data, the International Data Transfer Addendum to the EU Standard Contractual Clauses, issued by the Information Commissioner and laid before Parliament in accordance with s.119A of the Data Protection Act 2018 on 2 February 2022 but, as permitted by clause 17 of such addendum, the parties agree to change the format of the information set out in Part 1 of the addendum so that:

(i) the details of the parties in table 1 shall be as set out in the Parties section of this Addendum (with no requirement for signature);

(ii) for the purposes of table 2, the addendum shall be appended to the EU Standard Contractual Clauses (including the selection of modules and disapplication of optional clauses as noted above) and Annex C Part A selects the option and timescales for clause 9; and

(iii) the appendix information listed in table 3 is set out in the Key Terms, Annex B, and Annex C;

"UK GDPR" means the GDPR as applicable as part of UK domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 and as amended by the Data Protection, Privacy and Electronic Communications (Amendments etc) (EU Exit) Regulations 2019 (as amended); and

"UK personal data" means the processing of personal data to which Data Protection Legislation of the United Kingdom was applicable prior to its processing by Vendor.

1.3 In the event of any conflict or inconsistency between:

(a) the provisions of the Agreement and this Addendum, the provisions of this Addendum shall prevail; and

(b) the provisions of this Addendum and the Standard Contractual Clauses, the Standard Contractual Clauses shall prevail.

Save as specifically modified and amended in this Addendum, or as set out in the Standard Contractual Clauses, all of the terms, provisions and requirements contained in the Agreement shall remain in full force and effect and govern this Addendum.

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2. Data Protection

2.1 Fiserv and the Vendor are party to the Agreement. This Addendum, comprising the Key Terms and Annexes, is supplemental to and incorporated into the terms of the Agreement in order to particularise the provisions in the Agreement relating to the processing of personal data by the Vendor in the course of providing the Services, or otherwise in connection with the Agreement, where the disclosure and processing is necessary to perform the Services.

2.2 The Vendor agrees that for the purpose of the Data Protection Legislation, Fiserv is the controller (or processor) and the Vendor is the processor (or sub-processor), as stipulated in the Annex C Part A and Service Provider (as applicable) in relation to such processing of personal data.

2.3 The processing activities, including the subject matter and duration of the processing, the nature and purpose of the processing and the categories of data subjects are as set out in Row 2 of the Key Terms (unless Row 2 of the Key Terms are attached and filled out by the Parties for each processing of personal data in a relevant Statement of Work).

2.4 When the Vendor processes personal data in the course of providing the Services, the Vendor will:

(a) process, collect, use, retain, or disclose the personal data only in accordance with written instructions from Fiserv that are in accordance with the purposes of the Agreement (which may be specific instructions, or instructions of a general nature as set out in the Agreement, or as otherwise notified by Fiserv to the Vendor from time to time) and the Vendor shall ensure that at all times its processing, collection, use, retention or disclosure of personal data is necessary and proportionate in order to comply with such instructions. As at the date of this Addendum, Fiserv's written instructions are to only process the personal data as required in order to provide the Services. If the Vendor is required to process:

(i) EU/Swiss personal data for any other purpose pursuant to European Union or Member State laws to which the Vendor is subject;

(ii) UK personal data for any other purpose pursuant to United Kingdom laws to which the Vendor is subject; or

(iii) Brazilian personal data for any other purpose pursuant to the laws of Brazil to which the Vendor is subject,

the Vendor will inform Fiserv of this requirement first, unless such law(s) prohibit this on important grounds of public interest;

(b) at (i) all times comply with applicable Data Protection Legislation and notify Fiserv immediately if, in the Vendor's opinion, (1) an instruction for the processing of personal data given by Fiserv infringes applicable Data Protection Legislation or if Vendor can no longer meet the obligations of applicable Data Protection Legislation; or (2) if the Vendor has access, in the context of the performance of the Agreement, to Personal Data deemed excessive or unnecessary for the performance of the Agreement, undertaking to delete such Personal Data, and (ii) not cause Fiserv to violate any applicable Data Protection Legislation;

(c) assist Fiserv, taking into account the nature of the processing:

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(i) by appropriate technical and organisational measures and in so far as is possible, in fulfilling Fiserv's obligations to respond to requests from data subjects exercising their rights under applicable Data Protection Legislation;

(ii) in complying with obligations or requests imposed by any competent supervisory authority;

(iii) in ensuring compliance with the obligations pursuant to Articles 32 to 36 of the GDPR/UK GDPR and/or Articles 37 to 39 and 46 to 49 of the LGPD, as applicable, taking into account the information available to the Vendor; and

(iv) by making available to Fiserv all information which Fiserv reasonably requests to allow Fiserv to demonstrate that the obligations set out in applicable Data Protection Legislation relating to the appointment of processors and Service Providers have been met (including Article 28 of the GDPR/UK GDPR and the obligations set out in the LGPD regarding processors, as applicable);

(d) implement and maintain appropriate technical and organisational measures to protect the personal data against a Security Breach. These measures shall be appropriate to the harm which might result from any Security Breach of the personal data and having regard to the nature of the personal data which is to be protected. As a minimum, these should be as set out at Annex B;

(e) not give access to or transfer, disclose, or Sell any personal data to any third party (including any affiliates, group companies or sub-contractors) without the prior written consent of Fiserv, which consent shall be requested on at least 60 days' notice. Fiserv hereby consents to the sub-processors set out in Row 4 of the Key Terms. Where Fiserv does consent to the Vendor engaging a sub-processor to process any of the personal data, the Vendor must have in place a contract with the sub-processor that (i) contains terms in favour of Fiserv which are equivalent to those in these terms and as are required by applicable Data Protection Legislation, including but not limited to an agreement from any sub-processor not to Sell personal data; and (ii) is governed by the laws of a jurisdiction which recognises third-party beneficiary rights including by permitting Fiserv (as controller) to exercise the third-party beneficiary rights mandated to be included in contracts between processors and sub-processors by clause 9(e) of the EU Standard Contractual Clauses. For the avoidance of doubt, where a sub-processor fails to fulfil its obligations under any sub-processing agreement or any applicable Data Protection Legislation, the Vendor will remain fully liable to Fiserv for the fulfilment of the Vendor's obligations under these terms;

(f) not collect, use, retain, disclose, sell, share, or otherwise make personal data available for Vendor's own commercial purposes or in a way that does not comply with applicable Data Protection Legislation;

(g) not combine the personal data that Vendor receives from Fiserv with data of another business;

(h) promptly comply with any Fiserv request or instruction made pursuant to applicable Data Protection Legislation requiring the Vendor to provide, amend, transfer, or delete the personal data, or to stop, mitigate, or remedy any unauthorized processing;

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(i) ensure that personnel required to access the personal data are subject to a binding duty of confidentiality in respect of such personal data and take reasonable steps to ensure the reliability and competence of the Vendor's personnel who have access to the personal data;

(j) ensure that none of the Vendor's personnel publish, disclose, Sell or divulge any of the personal data to any third party unless directed in writing to do so by Fiserv;

(k) at the end of the Services, upon Fiserv's request, securely destroy or return such personal data to Fiserv, and delete existing copies unless:

(i) in respect of EU/Swiss personal data, European Union or Member State law;

(ii) in respect of UK personal data, United Kingdom law; and/ or

(iii) in respect of Brazilian personal data, the laws of Brazil

to which the Vendor is subject, require storage of such personal data;

(l) provide to Fiserv all information necessary to demonstrate compliance with this Addendum and allow Fiserv and its respective auditors or authorised agents to conduct audits or inspections during the term of the Agreement and for 2 years thereafter, which will include providing access to the premises, resources and personnel of the Vendor and sub-processors used in connection with the provision of the Services and provide all reasonable assistance in order to assist Fiserv in exercising its audit rights under this clause. The purposes of an audit pursuant to this clause 2.4(l) include verifying that the Vendor is processing personal data in accordance with the Vendor's obligations under this Addendum;

(m) permit Fiserv to monitor the Vendor’s compliance with the contract through measures, including, but not limited to, ongoing manual reviews and automated scans and regular assessments, audits, or other technical and operational testing at least once every 12 months;

(n) not anonymize Fiserv Personal Data or use the personal data in an anonymized manner except as set out in the Agreement and in this Addendum; and

(o) notify Fiserv if it can no longer meet obligations under this Addendum.

2.5 In the event of a Security Breach, or a suspected Security Breach, the Vendor will:

(a) take action immediately to investigate, identify, prevent, remedy, and mitigate the effects of, the Security Breach, or the suspected Security Breach;

(b) notify Fiserv as soon as possible and without undue delay and provide Fiserv with a detailed description of the Security Breach, or the suspected Security Breach, including:

(i) the date of the Security Breach and the likely impact of the Security Breach;

(ii) the categories and approximate number of data subjects affected and their country of residence and the categories and approximate number of records affected;

(iii) the risk posed by the Security Breach to individuals;

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(iv) the measures taken, or proposed to be taken, by the Vendor to address the Security Breach and to mitigate its adverse effects;

(v) the reason for any delay in notifying Fiserv if the Vendor has not notified Fiserv within 48 hours; and

provide timely and periodic updates to this information and any other information Fiserv may reasonably request relating to the Security Breach, or suspected Security Breach; and

(c) not release or publish any filing, communication, notice, press release, or report concerning the Security Breach, or the suspected Security Breach, without Fiserv's prior written approval (except where required to do so by law).

2.6 If the European Commission, or applicable supervisory authorities in the UK, Argentina, Brazil, or other countries or territories, lay down, or adopt, standard contractual clauses, data transfer agreements or requirements for the matters referred to in Article 28(3) and Article 28(4) of the GDPR/UK GDPR, pursuant to Article 28(7) or Article 28(8) of the GDPR/UK GDPR (as appropriate), the LGPD, or other Applicable Data Protection Legislation, and Fiserv notifies the Vendor that it wishes to incorporate any element of any such standard contractual clauses, data transfer agreement, or requirements into the Agreement, the Vendor will agree to the changes as reasonably required by Fiserv in order to achieve this.

2.7 The Vendor will not process:

(a) EU personal data outside the European Economic Area; or

(b) any other personal data outside of its country of origin,

except with the prior written consent of Fiserv.

2.8 If Row 5 of the Key Terms indicates that this clause 2.8 is applicable, the Vendor is permitted to process personal data in the country or countries specified in Row 5 of the Key Terms and the Vendor shall comply with clauses 2.9 or 2.10 (as indicated in Row 5) to 2.13 in relation to such processing of personal data. Save as specified in Row 5 of the Key Terms, Vendor will not otherwise process:

(a) EU personal data outside the European Economic Area; or

(b) any other personal data outside of its country of origin,

except with the prior written consent of Fiserv.

2.9 If Row 5 of the Key Terms identifies this clause 2.9 as applicable, Fiserv and Vendor each agree to comply with the obligations set out in the Standard Contractual Clauses as though they were set out in full in this Addendum, with Fiserv as the 'data exporter' and Vendor as the 'data importer'. Annex C, Part A sets out the details of:

(a) the Parties;

(b) the Annexes to the Standard Contractual Clauses; and

(c) the applicable modules of the EU Standard Contractual Clauses and the details to be specified in the applicable modules; and

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Annex C, Part B sets out details of supplementary measures, to which the Parties agree, to provide appropriate safeguards for personal data and Annex C, Part C sets out details of any technical or organisational measures which, if applicable, the Vendor will use to ensure compliance with data protection principles, accountability, and to meet, or assist Fiserv in meeting, requests from data subjects to exercise their rights.

2.10 If Row 5 of the Key Terms identifies this clause 2.10 as applicable, the Vendor confirms that all processing of personal data is covered by the Vendor's Processor Binding Corporate Rules, the terms of which are incorporated into these terms, and which can be found at the link included in the Key Terms. The Vendor agrees that Fiserv, as data controller, has the right to enforce these Processor Binding Corporate Rules against the Vendor, including a right to compensation in the event that the Rules are breached. The parties also agree to comply with the supplementary measures set out in Annex C, Part B, which are used to provide appropriate safeguards for personal data.

2.11 If with Fiserv's consent, Vendor transfers personal data outside Argentina and the country of destination does not have an adequate level of protection for personal data in accordance with Argentina's Agency for Access to Public Information determinations, Vendor will enter into, and agrees to the terms of, Fiserv's International personal data transfer agreement for the provision of services.

2.12 If with Fiserv's consent, Vendor transfers Personal Data outside Brazil and the country of destination does not have an adequate level of protection for Personal Data in accordance with the ANPD determinations, Vendor will adopt the mechanisms for international transfer of Personal data as provided by LGPD and ANPD and instructed by Fiserv. If Fiserv notifies Vendor that it wishes to incorporate any element of any standard contractual clauses to be issued by ANPD into the Agreement, the Vendor will agree to the changes as reasonably required by Fiserv in order to achieve this. Notwithstanding the above, Vendor will be responsible for complying with LGPD and other applicable rules in relation to the personal data international transfer.

2.13 If Fiserv has given consent to the Vendor transferring personal data, under one of clauses 2.9 – 2.12 above, on the basis of an adequacy decision or appropriate safeguard, which is subsequently held to be invalid, or if any supervisory authority requires transfers of personal data made pursuant to such decision or safeguard to be suspended, then Fiserv may, at its discretion, require the Vendor to cease processing personal data to which this clause applies, or co-operate with it, to facilitate use of an alternative transfer mechanism.

2.14 Vendor certifies that it understands this Addendum's and the CCPA's (and other applicable Data Protection Legislation's) restrictions and prohibitions on Selling personal data and retaining, using, or disclosing personal data outside of the parties' direct business relationship, and that it will comply with them.

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Annex B

PART A Security Requirements

In addition to agreeing to the Security Addendum in Annex B Part B, the Vendor shall provide specific details of its technical and organisational measures under the headings set out at (i) – (xii) below:

i. Measures of pseudonymisation and encryption of personal data

ii. Measures for ensuring ongoing confidentiality, integrity, availability and resilience of processing systems and services

iii. Measures for ensuring the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident

iv. Processes for regularly testing, assessing and evaluating the effectiveness of technical and organisational measures in order to ensure the security of the processing

v. Measures for user identification and authorisation

vi. Measures for the protection of data during transmission

vii. Measures for the protection of data during storage

viii. Measures for ensuring physical security of locations at which personal data are processed

ix. Measures for ensuring events logging

x. Measures for ensuring system configuration, including default configuration

xi. Measures for internal IT and IT security governance and management

xii. Measures for certification/assurance of processes and products

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PART B Security Addendum

This Security Addendum ("**Security Addendum**") amends and supplements the terms and conditions of the Agreement (and, and for the purposes of this Security Addendum, (i) any data processing addendum agreed between the parties which forms part of the Agreement, and to which this Security Addendum is annexed, shall be referred to as the "**Data Processing Addendum**"; and Fiserv shall be referred to as "**Fiserv**"). Capitalized terms which are not defined herein shall have the meanings ascribed to them in the Agreement.

In the event of any conflict between this Security Addendum and the Agreement (with the exception of any Data Processing Addendum agreed between the parties) the terms of this Security Addendum shall prevail. If a Data Processing Addendum has been agreed between the parties, in the event of any conflict between this Security Addendum and the Data Processing Addendum, the terms of the Data Processing Addendum shall prevail other than to the extent this Security Addendum provides for a higher standard of security or protection in respect of Personal Data in which case the terms of this Security Addendum shall prevail.

Vendor and Fiserv agree as follows:

1. Business Continuity & Disaster Recovery.

(a) Business Continuity & Disaster Recovery Plan.

(i) During the Term of the Agreement, Vendor shall maintain industry standard contingency and recovery plans and risk controls (collectively, a "**Business Continuity & Disaster Recovery Plan**") to ensure Vendor's continued and uninterrupted performance of its obligations under the Agreement. Vendor shall have delivered a copy of its Business Continuity & Disaster Recovery Plan, or a reasonably detailed summary thereof, prior to the execution of the Agreement and thereafter on each anniversary of the Effective Date. Vendor shall provide access to a full copy of its then-current Business Continuity & Disaster Recovery Plan promptly following Fiserv's written request. In the event Fiserv objects to the Business Continuity & Disaster Recovery Plan or any portion thereof, Vendor shall respond in writing within 30 days of Fiserv's objection setting forth the actions Vendor shall undertake to cure each such objection. Vendor agrees to comply with the terms of its Business Continuity & Disaster Recovery Plan, including maintaining the capacity to execute such plan, during the Term. The Business Continuity & Disaster Recovery Plan must include a pandemic response plan.

(ii) Vendor will work with the building manager at the Data Center(s) at which the Services are performed and/or where Fiserv's Confidential Information is stored to ensure that the building manager's emergency response and pandemic response plans are compatible with Vendor's Business Continuity & Disaster Recovery Plan. At Fiserv's request, Vendor will provide Fiserv with a written summary of any gaps or special considerations discovered in the building manager's plans that could impact the SLAs or the support of the Services.

(b) Notice Upon Use of Business Continuity & Disaster Recovery Plan. Upon the occurrence of any event requiring use of Vendor's Business Continuity & Disaster Recovery Plan, Vendor shall immediately, not to exceed two hours after Vendor becomes aware of such event, notify Fiserv in writing of the same, and Vendor shall promptly provide Fiserv with information in reasonable detail regarding the use and success or failure of such Business Continuity & Disaster Recovery Plan.

(c) BCP Test. Vendor will test its Business Continuity Plan no less than annually (a "**BCP Test**"), and, promptly thereafter, Vendor will provide Fiserv with a written summary of the results of a BCP Test. If any gaps or problems are revealed by a BCP Test, Vendor will also provide Fiserv with a remediation plan to address those gaps or problems to Fiserv's reasonable satisfaction within 30 days from BCP Test execution. In addition, Vendor agrees to participate, at Fiserv's expense, in Fiserv's tests of its own business continuity & disaster recovery plan upon reasonable advance written request from Fiserv.

(d) System Back-Up; Lost/Damaged Data. Vendor agrees to perform back-ups of its systems and data at least daily. Vendor shall, at its own expense, promptly replace or regenerate from Vendor's machine-readable media any data, programs or information which Vendor has lost or damaged, or obtain, at Vendor's own expense, a new copy of lost or damaged data, programs or information. Fiserv may, in its discretion, replace or regenerate any data, programs or information which Vendor has lost or damaged, or obtain a new copy of lost or damaged data, programs or information, and Vendor shall promptly reimburse Fiserv for all costs related to such replacement or regeneration.

(e) Recovery Time Objective and Recovery Point Objective. Vendor shall meet a recovery time objective ("RTO") of 24 hours and a recovery point objective ("RPO") of 24 hours.

2. Treatment of Personal Data and Fiserv Confidential Information.

(a) Confidentiality. Vendor covenants that it will comply with its confidentiality (including non-disclosure and restricted use) obligations under the Agreement.

(b) Personal Data. Any information obtained by Vendor from or on behalf of Fiserv or to which access was provided to Vendor by or at the direction of Fiserv which includes any of the following information ("**Personal Data**"), shall be deemed and handled as Fiserv's Confidential Information:

(i) (a) information which relates to, describes, or is capable of being associated with, or could reasonably be linked, directly or indirectly, to an identified or identifiable natural person or household (including, without limitation, names, signatures, postal addresses, telephone numbers, e-mail addresses, geolocation data, online identifiers, internet protocol addresses, other unique identifiers, professional and employment related information including employment history); or (b) can be used to authenticate a natural person (including, without limitation, employee identification numbers, government-issued identification numbers, passwords or PINs, financial account numbers, credit report information, biometric, audio, electronic, or health data, answers to security questions and other personal identifiers), in case of both subclauses (a) and (b), including, without limitation, all Highly-Sensitive Personal Data (defined below);

(ii) (a) natural persons' government-issued identification number (including passport number, social security number, driver's license number, insurance policy number, national insurance number, or state-issued identified number); (b) financial account number, credit card number, debit card number, credit report information, with or without any required security code, access code, personal identification number or password, that would permit access to a natural person's financial account; (c) financial records related to a natural person including transaction history and other account information, or (d) biometric, genetic, mental, or health data, including information in any form or medium created by or derived from a health care provider or a natural person and that relates to (e) the past, present or future physical, mental or behavioral health or condition of any natural person or a member of the natural person's family, (f) the

provision of health care to any natural person, or (g) payment for the provision of health care to any natural person (collectively "**Highly Sensitive Personal Data**");

(iii) "nonpublic personal information" about "consumers" or "Fiserv," or is "Fiserv information," "member information," or "consumer information," as such terms are defined in Title V of the Gramm-Leach-Bliley Act, 15 U.S.C. § 6802 et seq., and in amendments thereto and regulations issued thereunder ("**GLBA**");

(iv) "consumer report information" or "consumer information," as defined in the Fair Credit Reporting Act and in amendments thereto and regulations issued thereunder ("**FCRA**");

(v) "protected health information" or "individually identifiable health information," as defined in the Health Insurance Portability and Accountability Act of 1996, Public Law 104-191, and in amendments thereto and regulations issued thereunder ("**HIPAA**");

(vi) "personal data" or "personal information" as defined by applicable data protection legislation and regulations, including but not limited to the European Directive 2002/58/EC, the EU General Data Protection Regulation (EU) 2016/679 (the "**GDPR**"), the UK Data Protection Act 2018, GDPR as applicable as part of UK domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 and as amended by the Data Protection, Privacy and Electronic Communications (Amendments etc) (EU Exit) Regulations 2019 (as amended) (the "**UK GDPR**"), the California Consumer Privacy Act of 2018, as amended (Cal. Civ. Code §§ 1798.100 to 1798.199) (the "**CCPA**"), Law No. 13,709 of August 14, 2018 (General Data Protection Law, as amended), as enforced by the National Data Protection Authority in Brazil (the "**LGPD**"), and any legislation and/or regulation implementing or made pursuant to them, or which amends, replaces, re-enacts or consolidates them and all other applicable laws relating to processing of personal data and privacy that may exist in any relevant jurisdiction, including, where applicable, the guidance and codes of practice issued by supervisory authorities;

Solely to the extent the parties have not otherwise agreed to a Data Processing Addendum governing the disclosure of Personal Data, in addition to the confidentiality obligations of Vendor under the Agreement, Vendor agrees that it shall not disclose or use such Personal Data: (A) other than as strictly necessary to carry out its obligations under the Agreement; or (B) in any manner prohibited by GLBA, FCRA, HIPAA, COPPA, the GDPR, the UK GDPR, the CCPA, the LGPD, or any other privacy, security breach legislation and/or regulation, as applicable.

(c) Encryption.

(i) All of Fiserv's Confidential Information, including Personal Data (if any), must be encrypted while in storage, during transmission, and during processing, including while being stored in any back-up media. Such encryption must be in alignment with current industry standards as required, such as ISO/IEC 27000 series.

(ii) Upon Fiserv's request, Vendor agrees to reasonably cooperate with Fiserv to establish Transport Layer Security (TLS) encryption between Fiserv and Vendor for all email communications.

(d) Off-Shore Access to Confidential Information.

(i) Vendor shall not do the following without the prior written consent of Fiserv: (i) transmit Fiserv's Confidential Information to any location outside of the country of origin or in the case of an EEA Member State, the EEA (the "**Authorized Region**") (ii) allow access to Fiserv's Confidential Information by anyone located outside of the Authorized Region ; or (iii) use any person or facility located outside of the Authorized Region for the performance, directly or indirectly, of all or any portion of the Services; and

(ii) if Vendor desires to perform Services outside of the Authorized Region or send or allow access to Fiserv Confidential Information outside of the Authorized Region. Vendor must provide any such consent request to Fiserv with an adequate amount of lead time to enable Fiserv to conduct a risk assessment and obtain any required consents prior to the date Vendor desires to begin performing Services outside of the Authorized Region or sending or allowing access to Fiserv Confidential Information outside of the Authorized Region. If Fiserv consents to Vendor's request, then prior to the commencement date, Vendor will agree to abide by any additional terms or conditions that Fiserv or its affected clients deem necessary to ensure the security of the Services and any Fiserv Confidential Information. The foregoing restrictions do not apply to (i) Services that consist solely of technical support for Fiserv's products, services or systems so long as Vendor is not provided with and cannot access Fiserv Confidential Information; or (ii) Vendor does not require access to or connectivity with any Fiserv computing environment.

3. PCI Compliance. Vendor and the Services and/or Software provided under the Agreement shall each be and shall remain compliant (at Vendor's sole cost and expense) with the then-current Payment Card Industry Data Security Standard ("**PCI-DSS**") and other standards administered by the Payment Card Industry Security Standards Council (hereinafter "**PCI Standards**") to the extent that those standards are applicable (according to the scope stated in the standards themselves). Vendor will provide Fiserv with documentation of validations and, if applicable, certifications under the PCI Standards prior to performing Services under the Agreement and will provide an updated copy of such validations and certifications on each anniversary of the Effective Date at no cost to Fiserv, and will also notify Fiserv immediately if: (a) any of Vendor's validations or certifications under the PCI Standards lapses; (b) any claim is made that Vendor has failed to comply with the PCI Standards; or (c) Vendor becomes aware that it has failed to meet the PCI Standards in any way. Vendor shall continue after the expiration or termination of the Agreement to comply with the PCI Standards with respect to any data covered by the PCI Standards and obtained by Vendor from or on behalf of Fiserv during the course of performance under the Agreement and maintained for any reason by Vendor after the expiration or termination of the Agreement. Vendor shall not, in the course of providing the Services or otherwise performing its obligations under the Agreement, store any "sensitive authentication data," as that term is defined in the then-current version of PCI-DSS, except as strictly necessary to render the Services or perform under its obligations under the Agreement prior to the authorization of a payment card transaction. Further, Vendor shall cooperate in good faith in any examination by either Fiserv or its assessors directed at verifying Fiserv's or Vendor's compliance with PCI Standards, including providing all documentation reasonably requested by Fiserv and/or its assessors. If Vendor has not complied with the provisions of this Section 3 at any time, Vendor shall immediately remediate any deficiencies; in the event Vendor fails to remediate any deficiencies in a time period which is reasonably acceptable to Fiserv, Fiserv may terminate the applicable Order Form and/or the Agreement immediately upon written notice.

4. Security.

(a) Security Measures. Without limiting either the foregoing or any other obligations contained herein with respect to Fiserv's Confidential Information, Vendor represents and warrants that its Security Measures are designed to: (1) ensure the security and confidentiality of Fiserv's Confidential Information; (2) protect against any anticipated threats or hazards to the security or integrity of such data; (3) protect against unauthorized access to or use of such data that

could result in substantial harm or inconvenience to any consumer, Fiserv or employee; (4) ensure the proper (i.e., in accordance with applicable law and Section 5(a) hereof) disposal of Fiserv's Confidential Information; and (5) notify Fiserv as soon as possible and without undue delay (not to exceed two hours) if there is any evidence that an unauthorized use or disclosure of Fiserv's Confidential Information may have occurred. For the avoidance of doubt, Fiserv's Confidential Information includes Personal Data.

(i) All Fiserv Confidential Information shall be stored by Vendor on equipment located on Vendor's premises and either physically or logically separated from the data of Vendor's other clients. Vendor will document its compliance with this requirement, and the documentation will be available for Audit purposes, if requested by Fiserv. Vendor will document and record any drive failures or maintenance that will trigger data destruction tracking. Vendor will follow DOD-approved data destruction standards and processes, including industry-standard and commercially reasonable sign-offs and controls. Upon Fiserv's request, Vendor will certify in writing that it has destroyed Fiserv Confidential Information in accordance with DOD-approved data destruction standards.

(ii) Vendor, its Affiliates and permitted Subcontractors shall implement and maintain an information and physical security program consistent with legal requirements and industry best practices ("**Security Measures**") covering all Confidential Information obtained from or on behalf of Fiserv or its representatives, and Vendor will provide a summary of its Security Measures to Fiserv upon request at no additional charge. As part of the Security Measures, Vendor shall control and restrict access to its network on which any Fiserv Confidential Information is or may be stored. In addition, as part of the Security Measures, Vendor agrees to: (A) limit printouts, notes, photos, videos, audio recordings and other "recorded" versions of Fiserv Confidential Information to those that are reasonably necessary to perform its obligations under the Agreement; and (B) keep such records physically secure at all times, locked up when not in Vendor personnel's possession, and never checked as baggage on a flight.

(b) Technical and Organization Measures. Without limiting subsection (a)(ii) above, as part of the Security Measures, Vendor will adopt, maintain, and enforce all appropriate technical and organizational measures, including as required under ISO/IEC 27000 series of standards, Payment Card Industry Data Security Standard (PCI DSS) and Graham-Leach Bliley Act (GLBA), to protect all of Fiserv's Confidential Information, including without limitation Fiserv Confidential Information and Consumer Data, against unauthorized or unlawful processing; accidental or unlawful loss, destruction, damage, theft, alteration or disclosure or access; or unauthorized disclosure, use, or access. These measures shall be appropriate to the harm which might result from such acts and have regard to the nature of Fiserv's Confidential Information which is to be protected. Vendor shall implement and maintain effective distributed denial of service ("DDOS") countermeasures.

(c) Security Incidents. Vendor shall provide notice to Fiserv as soon as possible and without undue delay, not to exceed two hours after Vendor becomes aware of any evidence that any of the following has or may have occurred (hereinafter referred to as a "**Security Incident**"): (i) unauthorized or unlawful processing of; accidental or unlawful loss, destruction, damage, theft, alteration or disclosure of, or access to; or unauthorized disclosure or use of, or access to,, Fiserv's Confidential Information; , including a denial of service attack; or any other issue which violates this Security Addendum. Vendor shall (A) take action immediately to investigate, identify, prevent, remedy, and mitigate the effects of the Security Incident or

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suspected Security Incident; (B) take corrective action to stop further unauthorized use or disclosure of, or access to, Fiserv's Confidential Information; and (C) provide timely and periodic status reports to Fiserv (at least every two hours) until the matter has been remediated to Fiserv's satisfaction. Vendor will maintain records of all security incidents in accordance with industry practice and law and will make these records available to Fiserv and any affected customers upon request. Vendor shall, to the extent permitted by law, submit to Fiserv for review and approval all proposed communications including filings, press releases or reports to parties other than Fiserv regarding the Security Incident or suspected Security Incident, and shall not release or publish such proposed communications without Fiserv's prior written approval (except where required to do so by law). Vendor shall provide a written root cause analysis to Fiserv within five days of resolving or otherwise mitigating a Security Incident in accordance with the terms hereof. Vendor will bear the costs of reproduction or any other remedial steps necessary or advisable to address the security breach, including the costs of notifying or protecting persons whose data has been compromised. If requested by Fiserv, Vendor agrees to reasonably assist Fiserv with the testing of its incident management plans involving unauthorized intrusions or other breaches in confidentiality and integrity.

(d) Entitlement Reviews. On no less than a quarterly basis, Vendor shall perform and provide to Fiserv reports addressing entitlement reviews for access controls.

(e) Log Information. Vendor shall retain system log information and transaction log information for one year in accordance with regulatory requirements but no less than one year for logical systems and networks and no less than 90 days for physical security. Vendor shall review these logs daily (either manually or through an automated log management system) and address any discovered abnormalities promptly upon detection. Fiserv may review these logs upon request.

(f) Security Awareness Training. All Vendor Personnel who have access to Fiserv Confidential Information shall undergo Vendor's security training on an annual basis covering sound privacy and information security practices generally and about its obligations under this Agreement (provided a summary copy has been provided to and approved by Fiserv prior to the Effective Date, and thereafter upon Fiserv's request), or alternatively, undergo Fiserv's Security Awareness Training on an annual basis. Vendor covenants that all Affected Vendor Personnel, as defined below, will receive security awareness training before they are assigned to Fiserv's account. Upon written request from Fiserv, Vendor will certify to Fiserv in writing and on an annual basis that each Affected Vendor Personnel has completed the required security awareness training. Vendor agrees to modify the portions of its security awareness training program relating to Vendor's obligations to Fiserv from time to time as requested by Fiserv, including relevant training regarding confidentiality, privacy and data transfer laws as applicable.

(g) Physical Security.

(i) Prior to any visitor or contractor entering any Data Center Vendor shall capture that person's identification information in a log, journal or other business record. Visitor badges are for identification purposes and do not provide any access to a Fiserv facility or its areas within. Visitor badges should indicate "Escort Required" on the badge and be worn at all times.

(ii) Card access control will be used for Data Center access. Physical access cards will be issued to all of Vendor's employees, and may be issued to contractors after successfully completion of Fiserv Personnel Screening requirements as specified in GSI Policy. Each person should "swipe" his/her access cards for access to ensure that no piggybacking or tailgating is permitted. Card access should be used for both

entrance and exit to the Data Center and the activity should be logged. The logs of entrance and exit activity will be kept for no less than one year.

(iii) Visitors and Vendor Personnel will be escorted at all times to prevent access to systems to which they should not have access.

(iv) Camera systems will be time-synchronized with the card access system(s) and will run the entire time while visitors and Vendor Personnel are on the Data Center floor.

(v) Cameras will specifically view and monitor the infrastructure used to provide the Services and any other equipment or systems on which any Fiserv Confidential Information is hosted.

(vi) Vendor will conduct a quarterly review the Data Center access list in order to validate the access lists for visitors, Vendor Personnel, and other contractors.

(vii) Vendor shall have installed and shall maintain industry standard fire suppression systems in the Data Center.

(h) Firewall/Anti-Virus. Vendor shall install, monitor, and update (i) firewalls and other intrusion or penetration prevention measures, including a network intrusion detection system; (ii) anti-virus and other malicious or unauthorized code diction/protection software; and (iii) other applicable security measures and patches.

5. Record Retention and Destruction

(a) All records that Vendor is required to make and keep under the agreement for Services must be retained during the term of the agreement and for a period of five (5) years after the agreement for Services is terminated or as prescribed by law if later.

(b) All electronic Confidential Information must be deleted or otherwise permanently removed or sanitized from Vendor's networks, systems, workstations, and any other device where Confidential Information is used or accessed by using current industry-best practices. Vendor will provide written certification that the deletion, removal, or sanitization (as applicable) occurred and was performed in compliance with then-current industry-best practices.

(c) All tangible, non-electronic media that is used to store, process or transmit data relating to Fiserv or its customers must be destroyed by shredding with a cross-cut or confetti-type shredder or by pulverizing, crushing, or grinding into a powder. The destruction may be performed by Vendor or by a third party as long as the destruction of the media:

(i) is not destroyed erased rendered unreadable by a third party who is not a properly accredited agent of the Vendor;

(ii) is securely erased of all its contents and rendered unreadable before being disposed of;

(iii) containing redundant Confidential Information is secured in a lockable room on Vendor's premises with controlled access prior to being destroyed; and

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(iv) in relation to Vendor equipment that is no longer required because it is obsolete, redundant or broken, it must have any Confidential Information securely removed prior to disposal.

6. Audit.

(a) Fiserv Audits. At any time during the Term and for a period of two years following expiration or termination of this Agreement, upon not less than 10 days' prior written notice, Vendor, its Affiliates and permitted Subcontractors shall grant the internal and external auditors and personnel of Fiserv and its Affiliates and the customers of Fiserv and its Affiliates, and any examiners or agents from any regulatory body asserting jurisdiction over the business of Fiserv, any of Fiserv's Affiliates or any of the customers of Fiserv or its Affiliates (collectively, the "**Auditors**") reasonable access to Vendor (including, without limitation, access to records, systems, controls, processes and procedures related to performance of the Services by Vendor, its Affiliates and permitted Subcontractors) for the purpose of performing audits or examinations to verify Vendor's compliance with this Agreement (a "**Fiserv Audit**" and together with a Vendor Audit, an "**Audit**"). Vendor shall reasonably cooperate with the Auditors and provide to the Auditors, in a timely manner, all such assistance as they may reasonably require in connection with any Audit.

(b) Vendor Audits. Vendor employs an external auditor responsible for ensuring the integrity of its processing environments and internal controls. Vendor will audit the security of its computing environment and systems used to provide the Services to Fiserv no less frequently than on an annual basis and according to appropriate industry security standards, including without limitation as required for a Service Organization Control 1 ("**SOC1**") and Service Organization Control 2 Type II ("**SOC2**") audits (collectively, a "**Vendor Audit**"). (Such Vendor Audit will produce one or more reports, including without limitation a SOC1, Type 2 report and SOC2 report (each, an "**Audit Report**"), and Vendor shall provide a copy of each Audit Report to Fiserv at no charge within a reasonable time after its completion. The Audit Reports may be reviewed by the Auditors.

(c) Penetration Tests and Vulnerability Scans. Vendor shall perform the following scans and reviews and promptly provide Fiserv with the resultant reports: (i) monthly vulnerability scans on its externally facing infrastructure and on any network that processes, transmits, stores, or otherwise supports Fiserv's Confidential Information; and (ii) quarterly entitlement reviews of its access controls, as they apply to Fiserv's Confidential Information. On no less than an annual basis, Vendor shall perform an application penetration test and a penetration test of its externally facing and internal infrastructure and on any network that processes, transmits, stores, or otherwise supports Fiserv's Confidential Information, and shall promptly provide Fiserv with the resultant reports. Additionally, Vendor shall perform an application penetration test when significant code changes or updates are made to the Software or other systems being used to provide the Services and shall promptly provide the resultant report(s) to Fiserv. Additionally, upon Fiserv's written request and at its expense, Vendor shall permit Fiserv or its third-party designee to perform penetration testing and/or vulnerability scanning to test the security of the Software and/or systems used to provide the Services. Vendor shall remediate any findings resulting from any vulnerability scan, entitlement review, or penetration test as soon as commercially practicable; however, in the event such finding(s) affect Vendor's ability to meet its obligations under this Security Addendum or to otherwise comply with its own Security Measures, such finding(s) shall be remediated within 10 days of discovery.

(d) Audit Remediation. Vendor will use commercially reasonable efforts within 30 days to remediate (i) any errors identified in an Audit that could reasonably be expected to have an adverse impact on the Services and (ii) material control deficiencies identified in the Audit, and, in any event, shall remediate all Audit findings within no more than 90 days from the date on which a summary of the Audit findings are provided to Vendor by Fiserv. If Fiserv reasonably and in good faith determines that the Audit findings are not being sufficiently remediated, Fiserv shall provide Vendor with written notice of its concerns. Within 10 days of its receipt thereof, Vendor shall provide Fiserv with a written statement indicating how it intends to remediate the findings and the timing with respect thereto ("**Correction Plan**"). If the Correction Plan is not reasonably acceptable to Fiserv or if Vendor fails to remedy the findings in accordance therewith, Fiserv may terminate the Agreement upon 15 days' prior written notice without penalty, during which time Vendor may cure and avoid termination if the Audit findings are remedied to the reasonable satisfaction of Fiserv prior to the termination date. Upon any termination pursuant to this subsection (d), Vendor shall refund to Fiserv the pro-rata portion of any fees prepaid by Fiserv for Services as of the date of termination.

(e) Vendor Risk Assessment Questionnaires. Vendor agrees to complete Fiserv's annual vendor risk assessment questionnaire in a timely manner, as requested. Any findings shall be remediated in accordance with subsection (d).

7. **Compliance with Law.** Without limiting anything in this Security Addendum or in the Agreement, Vendor agrees to: (a) perform its obligations to Fiserv in accordance with applicable law or equivalent in regional reporting area; and (b) ensure that the Services and any system Vendor uses to process, transmit, store, or otherwise support any of Fiserv's Confidential Information are maintained in compliance with all laws applicable to the Services and/or to Fiserv's Confidential Information.

8. **Subcontracting.** Vendor may not subcontract, delegate, or outsource all or any portion of the obligations Vendor has or services Vendor performs for Fiserv without Fiserv's prior written consent. Any attempted delegation, subcontracting, or outsourcing in the absence of Fiserv's consent will be void. In the event Fiserv consents: (a) Vendor shall remain responsible for all acts, omissions, and breaches of the Agreement, including this Security Addendum by any such Subcontractor; (b) this Security Addendum shall apply to any Subcontractor to whom Vendor subcontracts whom Vendor uses to perform the Services and/or to host any Fiserv Confidential Information, and Vendor shall be responsible for any breach of this Security Addendum by any such Subcontractor to the same extent as if Vendor had committed such breach; and (c) the requirements set forth in this Security Addendum shall apply with equal force to all Data Centers used to provide Services to Client, including the primary Data Center(s) and any secondary or backup Data Center(s).

9. **Background Checks**

[OPTION 1 – use if Vendor staff will be granted access into the Fiserv system/network, or be granted physical, unescorted access into Fiserv Facilities/Premises]

(a) During the term of this Agreement, to the extent not prohibited by applicable law, Vendor covenants that all Vendor Personnel who have access to Fiserv's networks or systems and/or who perform Services on Fiserv's premises without the supervision by a Fiserv associate ("**Affected Vendor Personnel**") will receive a background check that is based on written requirements provided to Vendor by Fiserv from time to time and that includes the minimum requirements described below. Vendor also covenants that all Affected Vendor Personnel will, if requested by Fiserv, receive drug testing before they are assigned to Fiserv's account. Immediately after Vendor signs this Agreement (but, in any case, no later than thirty (30) days),

Vendor agrees that it will provide Fiserv's security office with the names of all Affected Vendor Personnel (and any other information requested by Fiserv) for the purpose of initiating the background checks described below.

(b) Vendor covenants that it will: (a) use the Agency to perform the background check described below; (b) notify all Affected Vendor Personnel of the background check requirement; (c) obtain each Affected Vendor Personnel's written consent to authorize the Agency to share the results of the background check directly with Fiserv; (d) authorize the Agency to share the results of all background checks directly with Fiserv; (e) promptly after signing this Agreement, execute an agreement with the Agency to meet all laws and regulations related to the background checks; and (f) provide Fiserv with written evidence of successful background checks on all Affected Vendor Personnel.

(c) The background check to be performed for all Affected Vendor Personnel must, at a minimum, include: a ten (10) year background check (unless prohibited by law, in which case the background check will extend as far back as permitted by applicable law) that includes an investigation for: (a) any conviction of: (i) any criminal offense involving securities-related crimes, antitrust, dishonesty, a breach of trust, money laundering or manufacturing or distribution of illegal drugs; or (ii) any other criminal offense that constitutes a felony; or (b) any agreement to enter into a pretrial diversion or similar program in connection with a citation or prosecution for any criminal offense described in in this subsection (d)(iii) ("Disqualifying Crime").

(d) If an Affected Vendor Personnel's background check reveals a Disqualifying Crime or if Vendor otherwise becomes aware, through any means, of a Disqualifying Crime at any time in an Affected Vendor Personnel's background, then Vendor must ensure that the Affected Vendor Personnel is not assigned to Fiserv's account or, if already assigned to Fiserv's account, is promptly removed, in accordance with applicable law, from Fiserv's account, and the Affected Vendor Personnel may not be reassigned to Fiserv's account without Fiserv's prior written consent. In addition, if any Affected Vendor Personnel assigned to Fiserv's account is believed to have performed, or has been charged with performing, an illegal act that would cause him or her to fail a background check, then he or she must be promptly removed, in accordance with applicable law, from Fiserv's account and may not be reassigned to Fiserv's account without Fiserv's prior written consent.

(e) The background check described above must be performed for each Affected Vendor Personnel at least every five (5) years.

(f) Vendor shall submit a report by the 15th of each month to backgroundchecks@fiserv.com identifying the Affected Vendor Personnel who are engaged in the support of current Statements of Work and those Affected Vendor Personnel that were removed from Fiserv's account during the previous month and date of such removal.

(g) For all Vendor personnel that are not designated as Affected Vendor Personnel, Vendor represents and warrants that it shall perform a commercially reasonably security check on such Vendor personnel consistent with industry best practices.

*[OPTION 2 Use if Vendor staff will **not** be granted access into the Fiserv system/network, or be granted physical, unescorted access into Fiserv Facilities/Premises]*

(a) The Vendor covenants that prior to delivery of the Services all Vendor employees, agents or subcontractors ("**Vendor Representatives**") who may obtain access to Confidential Information of Fiserv or its customers will receive background checks that are appropriate to the duties performed in respect of the Services provided to Fiserv.

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(b) The background check to be performed for all Vendor Representatives must, at a minimum, include a background check (unless prohibited by law) that includes an investigation for:

(i) any criminal offense involving securities-related crimes, fraud, dishonesty, a breach of trust, or money laundering; or

(ii) any other criminal offense that constitutes a crime and that is related to the job responsibilities of the Vendor Representative.

(c) The Vendor will:

(i) use all reasonable efforts to ensure that the individual is honest, law-abiding and has no known links to any organization, group or network which participates in, encourages or supports unlawful acts;

(ii) conduct appropriate recruitment and security vetting procedures in relation to the individual;

(iii) not employ or engage anyone to perform its obligations under the contract who has not passed Vendors security and vetting procedures; and

(iv) maintain and comply with its own security and vetting policies and standards.

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Insurance Exhibit to Security Addendum

1. Required insurance types and amounts:

   a. Commercial General Liability Insurance in an amount of $1,000,000 per occurrence, with a $2,000,000 general aggregate covering, without limitation, bodily injury (including death), personal injury, defamation, property damage, contractual liability and products/completed operations coverage. Fiserv, its Affiliates, and their respective successors, and each of their respective directors, officers, and employees shall be named as additional insureds on this policy either by a blanket endorsement, in which case, a copy is not required; or by separate endorsement if required by the insurance carrier, such separate endorsement to be provided to Fiserv.

   b. Workers' Compensation coverage at the statutorily required level for all Personnel in the states in which the Services are performed, and Employer's Liability with limits of $1,000,000 each accident.

   c. Commercial Automobile Liability Insurance in an amount of $1,000,000 combined single limit covering bodily injury (including death) and property damage for all owned, hired, and non-owned vehicles used by Vendor. Fiserv, its Affiliates and their respective successors, and each of their respective directors, officers, and employees shall be named as additional insureds on this policy either by a blanket endorsement, in which case, a copy is not required; or by a separate endorsement if required by the insurance carrier, such separate endorsement to be provided to Fiserv.

   d. Umbrella Liability Insurance which shall provide excess, follow-form coverage with respect to the liability coverage required in subsections (a), (b), and (c) herein in an amount of $5,000,000 per occurrence and in the aggregate.

   e. Commercial Crime Insurance, including employee theft and computer fraud in an amount of $5,000,000 per claim, to include third party coverage to respond to any loss involving Fiserv property or property for which Fiserv is legally liable under Vendor's care, custody, and control resulting from fraudulent activity of Vendor in the servicing of this Agreement.

   f. Professional Liability or Technology Errors and Omissions Insurance to include cyber liability coverage with per claim limits of $5,000,000.

2. All of the foregoing policies shall be issued by insurance companies maintaining an A.M. Best Company rating of "A-VII" or better. These insurance provisions set forth the minimum amounts and scopes of coverage to be maintained by Vendor and its Subcontractors and are not to be construed in any way as a limitation of its liability under this Agreement. If Vendor's Subcontractors do not maintain the insurance required herein, Vendor shall endorse its policies to cover its Subcontractor's activities under this Agreement.

3. All deductibles specified in the required insurance policies shall be assumed by and are for the account of Vendor or its Subcontractor(s). Where allowed by law or regulation, all insurance coverage shall be primary and will not participate with nor will be excess over any valid and collectable insurance or program of self-insurance carried by Fiserv. Failure of Vendor or any Subcontractor to maintain the required insurance shall constitute a material breach of this Agreement.

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4. Prior to signing this Agreement, Vendor shall furnish Fiserv with its ACORD Certificate(s) of Insurance, and any separate endorsements required to name Fiserv, its Affiliates and their respective successors, and each of their respective directors, officers, and employees as additional insureds as specified in subsections (a) and (c) above, as evidence of all of the foregoing insurance coverage, and automatically thereafter concurrent with the renewal of each required policy. Should Vendor receive notice of cancellation or a material reduction in any of the required policies, Vendor shall promptly provide Fiserv with no less than 30 days prior written notice of the same, unless such coverage is immediately replaced with similar coverage in scope and limits. Vendor will also provide certificates of insurance for any approved Subcontractors to Fiserv upon Fiserv's request. Failure of Vendor or any Subcontractor to provide any certificate(s) of insurance shall not absolve Vendor or any Subcontractor of its responsibility to maintain the required insurance.

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Annex C

PART A

Choice of SCC Module	☐ Module 2 (controller to processor) **OR** ☐ Module 3 (processor to (sub) processor) **OR** ☐ Both Modules 2 and 3 (controller to processor and processor to (sub) processor)
Options selected under the SCCs	**Clause 9:** Option 1 (specific prior authorisation for sub-processors) and the parties agree: 1) that the time period for submitting requests for authorisation shall be sixty days; 2) that the Vendor shall submit any request for authorisation to Fiserv which shall liaise with the controller in relation to such authorisation; **Clause 17** (Governing law): the clauses shall be governed by the laws of Ireland; and **Clause 18** (Choice of forum and jurisdiction): the courts of Ireland shall have jurisdiction.
Annex 1:	
A: List of Parties	1) The data exporter shall be Fiserv at the address set out in details of the parties above; the contact person for Fiserv shall be: dpo@fiserv.com; [*Insert details of the activities relevant to the data transferred under the Standard Contractual Clauses*]; the signature of the data exporter and the date of signature shall be as below; and the role of the exporter is [*processor*] [*and*] [*controller*]; 2) The data importer shall be the Vendor at the address set out in details of the parties above; the contact person for the vendor shall be: [*Provide relevant details*]; [*Insert details of the activities relevant to the data transferred under the Standard Contractual Clauses*]; the signature of the data importer and the date of signature shall be as below; and

	the role of the importer is [*processor*] [*and*] [*(sub) processor*].
B: Description of transfer	***Categories of data subjects whose personal data is transferred:*** [Row 2 of the Key Terms above] [**OR**: *Insert the relevant categories of data subjects whose personal data is transferred if different than that identified at Row 2 of the Key Terms*] ***Categories of personal data transferred:*** [Row 2 of the Key Terms above] [**OR:** *Insert the relevant categories of personal data that are transferred if different than that identified at Row 2 of the Key Terms*] ***Sensitive data transferred (if applicable) and applied restrictions or safeguards:*** [*Insert sensitive data transferred if applicable*] If sensitive data are transferred, see Annex C, Part C for applicable restrictions and safeguards ***Frequency of transfer (e.g. whether on a one-off or continuous basis):*** [*Insert frequency of transfer*] ***Nature of the processing/ processing operations:*** [Row 2 of the Key Terms above] [**OR**: *Insert the nature of the processing relating to the transfer if different than that identified at Row 2 of the Key Terms*] ***Purpose(s) of the data transfer and further:*** [Row 2 of the Key Terms above] [**OR**: *Insert the purposes relating to the transfer/further processing if different than that identified at Row 2 of the Key Terms*] ***Period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period:*** [Row 3 of the Key Terms above] [**OR**: *Insert the retention period relating to the transferred personal data if different than that identified at Row 3 of the Key Terms*]

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	The subject matter, nature and duration of the processing: [Row 2 of the Key Terms above] [**OR**: *Insert the subject matter, nature and duration of the processing relating to the transfer if different than that identified at Row 2 of the Key Terms*]
C: Competent supervisory authority	The Data Protection Commission of Ireland and Information Commissioner and the Swiss Federal Data Protection in so far as the FDAP is applicable
Annex II:	
Technical and organisational measures	See Annex B

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PART B Supplementary Measures

1. The Parties shall ensure that the Vendor shall not have access to the personal data in clear-text. To ensure this:

   (a) Fiserv shall use strong encryption before transmission of the data to the Vendor and shall verify the identity of Vendor;

   (b) the encryption algorithm and its parameterization (e.g., key length, operating mode, if applicable) conform to the state-of-the-art and can be considered robust against cryptanalysis performed by public authorities in the recipient country taking into account the resources and technical capabilities;

   (c) the strength of the encryption and key length takes into account the specific time period during which the confidentiality of the encrypted personal data must be preserved;

   (d) the encryption algorithm is implemented correctly and by properly maintained software without known vulnerabilities the conformity of which to the specification of the algorithm chosen has been verified, e.g., by certification;

   (e) the keys are reliably managed (generated, administered, stored, if relevant, linked to the identity of an intended recipient, and revoked); and

   (f) the keys are retained solely under the control of Fiserv, or by an entity trusted by Fiserv;

2. The Parties shall ensure that the data is pseudonymised before transfer to the Vendor. To ensure this:

   (a) Before transferring the personal data, Fiserv shall process it in such a manner that the personal data can no longer be attributed to a specific data subject, nor be used to single out the data subject in a larger group without the use of additional information;

   (b) that additional information shall be held exclusively by Fiserv and kept separately in a Member State or in a third country, by an entity trusted by Fiserv in the EEA or under a jurisdiction offering an essentially equivalent level of protection to that guaranteed within the EEA;

   (c) Fiserv shall ensure that disclosure or unauthorised use of that additional information is prevented by appropriate technical and organisational safeguards;

   (d) Fiserv shall ensure that it retains sole control of the algorithm or repository that enables re-identification using the additional information; and

   (e) Fiserv has established by means of a thorough analysis of the data in question - taking into account any information that the public authorities of the recipient country may be expected to possess and use - that the pseudonymised personal data cannot be attributed to an identified or identifiable natural person even if cross-referenced with such information.

3. The Vendor warrants and represents that it shall use its best efforts to aware of an actual or potential changes to the information that it has provided to Fiserv under clause 14c of the EU

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Standard Contractual Clauses and shall advise Fiserv within 48 hours of any actual or potential changes to such information.

4. The Vendor warrants and represents that:

   (a) it has not purposefully created back doors or similar programming that could be used to access the personal data processed in connection with this Addendum;

   (b) it has not purposefully created or changed its business processes in a manner that facilitates access to such personal data; and

   (c) law or government policy to which Vendor is subject does not require the Vendor to create or maintain back doors or to facilitate access to such personal data; and

   (d) if the personal data processed by Vendor is encrypted, Vendor is not obliged to be in possession or to hand over the encryption key;

   (e) it will notify Fiserv if, at any time it is unable to continue complying with this commitment and agrees that Fiserv may terminate the Agreement on such notice period as is stipulated by Fiserv if Vendor breaches this provision.

5. So as to facilitate the audit right granted under clause 2.4(l), the Vendor warrants and represents that:

   (a) its access logs and other similar trails relating to access to personal data, in particular by public authorities, are and will remain tamper proof (e.g. they should be made inalterable using state of the art encryption techniques, such as hashing, and also systematically transmitted to the exporter on a periodic basis) so that the auditors can find evidence of disclosure; and

   (b) its access logs and other similar trails distinguish between access due to regular business operations and access due to orders or requests for access.

6. The Vendor agrees to:

   (a) provide the notification under clause 15.1 of the EU Standard Contractual Clauses before access is granted to personal data;

   (b) monitor any legal or policy developments that might lead to its inability to comply with its obligations under this Addendum and promptly inform Fiserv of any such changes and developments, if possible ahead of their implementation.

7. The Vendor agrees that if it receives any requests to access personal data, which would mean that it can no longer give the warranty at clause 14(a) of the EU Standard Contractual Clauses, that it will promptly advise Fiserv that it will return the data to Fiserv, unless Fiserv instructs the Vendor

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not to do so, the parties shall test this mechanism regularly to ensure that it can be applied on short notice.

8. If the Vendor receives a request for the disclosure of personal data processed in connection with this Addendum from a public authority in a third country, the Vendor shall:

   (a) inform the requesting public authority of any incompatibility of the order with the safeguards contained in the Standard Contractual Clauses and the resulting conflict of obligations for the Vendor;

   (b) notify simultaneously and as soon as possible Fiserv insofar as possible under the third country legal order.

9. The Vendor shall only ever access personal data processed in connection with this Addendum, including for support purposes, in plaintext where the exporter or the data subject gives consent to this.

10. The Vendor shall:

   (a) promptly notify the data subject of any request or order received from the public authorities of a third country, to release personal data which the Vendor processes in connection with this Addendum, so as to enable the data subject to seek information and an effective redress (e.g. by lodging a claim with his/her competent supervisory authority and/or judicial authority and demonstrate his/her standing in the courts of the third country); or

   (b) notify the data subject as soon as possible in the event that law to which the Vendor is subject prevents earlier notification to the data subject under section 10.a above and make best efforts to obtain a waiver of any prohibition to notify the data subject.

   (c) assist the data subject in exercising his/her rights in the third country through ad hoc redress mechanisms and legal counselling.

11. If the Vendor discloses personal data in violation of these supplementary measures the Vendor agrees to compensate data subjects for any material and non-material damage suffered.

12. Vendor shall publish transparency reports annually summarizing all law enforcement requests or requests by public authorities for access to personal data, which are complied with and which are declined.

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PART C: Supplemental technical and organisational measures

To be completed by Vendor with details of any measures taken:

- for ensuring data minimisation
- for ensuring data quality
- for ensuring limited data retention
- for ensuring accountability
- for allowing data portability and ensuring erasure or to provide assistance to Fiserv in meeting these and other data subject rights

If the Vendor processes any sensitive data, then this should also include details of any restrictions or safeguards, taking into consideration the nature of the data and risks involved – such as strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures.

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EXHIBIT B

STATEMENT OF WORK

THIS STATEMENT OF WORK ("**Statement of Work**"), dated as of the Effective Date indicated below, is issued pursuant to and incorporates the terms and conditions of the Consulting Services Agreement (the "**Agreement**") dated _____, between _____ ("Consultant") and _____ ("**Fiserv**").

1. **Name and Address of Fiserv signing this Statement of Work:**

   _____

2. **Project Description**: Consultant will perform the Services identified below for Fiserv.
   [Insert Description of Services to be performed, work product specification, etc.]

   _____

3. **Fees and Expenses:** The Project Fees paid to Consultant for the Services performed and expenses incurred are identified below.
   [Insert Fees and Expenses]

   _____

4. **Work Schedule and Project Duration:** Services under this Statement of Work will begin on _____. The expiration date of this Statement of Work is _____.

5. **Personnel:**
   Fiserv Project Manager:
   Consultant Representative:
   Consultant Personnel Performing the Services:

6. **Location for Performance of Work:**

7. **Data:**
   The Consultant agrees to process Fiserv Data as set forth in Exhibit A to this SOW in accordance with the Data Processing Addendum incorporated in the Agreement.

8. **Other Deliverables:**

IN WITNESS WHEREOF, the parties have executed this Statement of Work as of the Effective Date.

FISERV		**CONSULTANT**	
By:	_____	By:	_____
Title:	_____	Title:	_____
Effective Date:	_____	Date:	_____

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Exhibit A - Data Processing Addendum Key Terms

KEY TERMS

1	**Processing Activities**	Pursuant to the Data Processing Addendum incorporated into the Agreement, this summary sets out details of the processing of personal data under the SOW. **Subject matter of the processing** The personal data shall be processed in order to allow the Vendor to provide the Services. **Nature and purpose of the processing** [*Insert details around the nature and purpose of the processing as provided by the processor/sub-processor*] **Categories of data subjects** The personal data processed relates to the following categories of data subjects: ☐ Fiserv's employees ☐ Fiserv's contractors ☐ Fiserv's customers and employees [*Insert any additional relevant categories*] **Categories of personal data processed** The personal data processed comprises the following categories of data: ☐ Names ☐ Addresses ☐ Dates of birth ☐ Telephone numbers ☐ Emails ☐ Job titles ☐ Card numbers ☐ Transaction history ☐ Device IDs ☐ Geolocation [*Insert any additional relevant categories*] **Sensitive categories of personal data processed (if applicable)** The personal data transferred concern the following special categories of data: [*If applicable, insert relevant special categories of data processed*]
2	**Duration**	The processing will be carried out for the duration of the SOW.
3	**Approved sub-processors**	[*Insert list of approved sub-processors*]
4	**Cross-border data transfers**	Personal data shall not be accessed or transferred outside of its country of origin (the US). **OR**

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		☐ Clause 2.8 shall apply to the Agreement (data may be transferred to or accessed in [*insert relevant jurisdiction(s)*]) ☐ Clause 2.9 shall apply to the Agreement (data may be transferred to or accessed in [*insert relevant jurisdiction(s)*]) ☐ Clause 2.10 shall apply to the Agreement (link)